

UNITED STATES INTERNATIONAL TRADE COMMISSION

In the Matter of:
CERTAIN WEARABLE DEVICES

) **Investigation No.:**
) **337-TA-1478**

Pages: 1 - 122
Place: Washington, D.C.
Date: June 3, 2026



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1 UNITED STATES INTERNATIONAL TRADE COMMISSION

2 Washington, D.C.

3 BEFORE THE HONORABLE DORIS JOHNSON HINES

4 Administrative Law Judge

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7 IN THE MATTER OF: : Investigation No.

8 CERTAIN WEARABLE DEVICES : 337-TA-1478

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13 International Trade Commission

14 500 E Street, S.W.

15 Washington, D.C.

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17 Wednesday, June 3, 2026

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19 MARKMAN HEARING and CASE MANAGEMENT CONFERENCE

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21 The hearing commenced, pursuant to the notice of the
22 Judge, at 9:00 a.m. Eastern.

23

24 Reported by: Carmen Smith

25

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1 P R O C E E D I N G S

2 (9:00 p.m.)

3 PRESIDING JUDGE: We are here for a claim
4 construction hearing and a case management conference in
5 Certain Wearable Devices, Investigation Number 337-1478.

6 May I have appearances from counsel, please, and
7 we'll start with the Complainant.

8 MR. TRAINOR: Your Honor, Sean Trainor on behalf
9 of the Complainant Samsung. With me is my colleague, Mark
10 Pensabene. Also here today are Dan Girdwood and Arvind
11 Iyengar from Samsung Electronics America.

12 PRESIDING JUDGE: Thank you. Good morning and
13 welcome.

14 For the Respondents, please.

15 MR. LANDINGER: Good morning, your Honor.
16 Michael Landinger on behalf of the Oura Respondents. With
17 me, my colleagues Brian Nolan, Brady Nash, and our hot seat
18 guy, Mr. James Bell.

19 PRESIDING JUDGE: Good morning to you all and
20 welcome as well.

21 Two issues today, claim construction and the May
22 27 letter and response on request for admission. I'd like
23 to start with claim construction, if it's all the same to
24 you all. My first question, have you all decided order of
25 presentation?

1 MR. PENSABENEE: We have, your Honor. The
2 Respondents are going to start by arguing the first two
3 terms, and we agreed that arguing together, we generally
4 agree they stand or fall together. We will respond for the
5 third term, I will start.

6 PRESIDING JUDGE: Okay. That makes a lot of
7 sense, and thank you for agreeing to that in advance.

8 So before we start with claim construction, is
9 there anything else we should discuss now?

10 MR. TRAINOR: No, your Honor.

11 MR. LANDINGER: Nothing for Respondents, your
12 Honor.

13 PRESIDING JUDGE: Thank you. Then why don't we
14 start.

15 MR. NOLAN: Your Honor, may I approach the
16 podium?

17 PRESIDING JUDGE: Please.

18 MR. NOLAN: Your Honor, would you like hard
19 copies of our presentation?

20 PRESIDING JUDGE: No, thank you.

21 MR. NOLAN: Guess we could have saved a few more
22 trees.

23 PRESIDING JUDGE: No saving trees here. Before
24 you start, may I ask a couple of general questions.

25 From the joint claim construction chart, it

1 appears there are no agreed constructions; is that right?

2 MR. NOLAN: I think from the joint claim
3 construction chart, everyone is offering plain and ordinary
4 meaning with the exception of the three terms that we have.
5 But I don't know that there's a dispute about the other
6 terms except for the three that are before us right now.

7 PRESIDING JUDGE: Okay. All right. Second
8 question. Is there any dispute about the level of skill in
9 the art?

10 MR. NOLAN: While there's a slight difference in
11 the way that Complainant and Respondents have defined the
12 person of ordinary skill in the art, I believe Respondents
13 also focuses on experience with wearable devices.

14 I do not think that difference impacts any of
15 the terms that are before your Honor today.

16 PRESIDING JUDGE: Okay. Is that agreed?

17 MR. PENSABENEE: We agree.

18 PRESIDING JUDGE: All right. Third question.
19 Both parties have submitted expert declarations, and my
20 question is must I consider the expert declarations to
21 decide the issues that the parties are arguing today?

22 MR. NOLAN: I think from Respondents'
23 perspective, for the '675 patent, which is the first two,
24 the indefiniteness, we think that those can stand just on
25 the absence of disclosure in the extrinsic evidence that

1 would allow a person of ordinary skill in the art to
2 interpret it.

3 PRESIDING JUDGE: Okay.

4 MR. NOLAN: I do think that we certainly talk
5 about their expert deposition in some of our slides and in
6 our presentation of the '675 because we think it supports
7 our position. And then similarly, I do believe my
8 colleague will reference, my colleague Mr. Nash, will
9 handle the '789 patent for us -- excuse me, the '359 patent
10 claims for us. And I do think that he references our
11 expert declaration in his presentation.

12 So I do think you will see evidence on those
13 points.

14 PRESIDING JUDGE: Okay. Second question, then.
15 Were both experts deposed?

16 MR. NOLAN: Respondents took the deposition of
17 Mr. Young. Complainants, I believe, chose not to take the
18 deposition of Respondents' expert.

19 PRESIDING JUDGE: Okay. So I'll ask you the
20 same questions, but we can wait on that and you can address
21 that when you address your views on claim construction.

22 All right. Those are the questions I had.
23 Thank you.

24 MR. NOLAN: My name is Brian Nolan. I have the
25 privilege of representing Oura Respondents today in this

1 matter.

2 If we could go to the third slide in our
3 presentation.

4 So today we're dealing with the term, if we
5 focus in on it, although there is a rather long claim term,
6 really the focus is on the second that says "a second
7 period of time shortly before and/or immediately after a
8 first period of time."

9 It's Respondents' position that that
10 terminology, both because of the definition of first period
11 of time and second period of time, coupled with the
12 temporal relationships between the two, does not provide
13 reasonable certainty to the person of ordinary skill in the
14 art.

15 As you will see today, Complainant seeks to
16 offer construction for the first period of time, and the
17 second period of time, and that temporal relationship
18 between the two either shortly before or immediately after,
19 that it purports is based on the intrinsic evidence.

20 But hopefully as I take you through the
21 presentation today, you'll understand that Complainant
22 misinterprets the teaching of the specification. Starting
23 with the first period of time.

24 As we note at the end of our presentation,
25 Complainants has offered a variety of different definitions

1 for the first period of time, but they seem to have landed
2 on the first period of time is when the device is
3 performing some task, and that is when the device is
4 attempting to understand whether it is worn by a user.

5 Complainants' definition of the second period of
6 time seems to focus on understanding the user's level of
7 activity to determine whether it should do something with
8 respect to a second sensor.

9 One thing we have complainants' construction up
10 here, and one thing you'll notice, they have the term
11 "before" in there. They have removed the term "shortly"
12 right before in the first description of begins (i) before.
13 So they have removed the term "shortly," and we will get
14 into the fact of they are removing this objective term,
15 what does it mean to happen shortly from the first period
16 of time.

17 If we can go to slide 4, when you look at this
18 slide as a whole, you'll see the claim term we've
19 highlighted is the claim term in dispute. But what is
20 being discussed in this aspect of the claim is taking some
21 information to make a determination, as you'll see in the
22 second -- third limitation in this claim that is activating
23 at least one of the second sensors.

24 So this is about obtaining some information in
25 this first section to determine whether you should activate

1 the second sensor.

2 We'll call it second sensor as the claim does,
3 but I think the parties appreciate that that's really the
4 biometric sensor whereas the first sensor is a sensor
5 that's focused on motion.

6 So you're going through this first section to
7 determine whether you should turn on the biometric sensor,
8 and I think this is going to be an important issue to
9 appreciate as we look through the intrinsic record,
10 particularly what Complainant has pointed to.

11 If we can now go to slide 5, on slide 5, we've
12 highlighted some testimony from Complainants' claim
13 construction expert, Dr. Young. So as you can see, he
14 acknowledges that really this part of the claim is talking
15 about turning on the second sensor or the biometric sensor.

16 So I don't think that there's a dispute that
17 we're talking about. Some parts of this turns on the
18 biometric sensor.

19 And then I should just take us back quickly to
20 slide 4, just so you can see. And at the bottom of this,
21 there's other parts that talk about turning off the
22 biometric sensor in the last limitation, it says "in
23 response to identifying that motion of the electronic
24 device included in the second information is more than a
25 threshold motion in activating at least one second sensor."

1 So there's an activation and a deactivation
2 aspect of this. I just want to put your Honor in that
3 mind-set as we walk through the intrinsic record.

4 I'd like to turn --

5 PRESIDING JUDGE: Let me just ask, is it your
6 view, then, that what the claim is saying is that if there
7 is more than some motion, the second sensor, the biometric
8 sensor, is turned off?

9 MR. NOLAN: I think that's one of the examples.
10 It just says a threshold. So there are other -- I think
11 that you can also see in certain instances you may look for
12 the lack of motion to turn a sensor on and you may look for
13 excessive motion to turn the sensor off too.

14 But your Honor is correct, this is the concept
15 of you measure a certain level of motion and you do
16 something with respect to the biometric sensor. In your
17 Honor's example, if the motion was high enough to get over
18 the threshold, you would turn on the biometric sensor, and
19 then if the motion was below the threshold, you turn it
20 off.

21 But I think the alternative also works, your
22 Honor.

23 PRESIDING JUDGE: Okay.

24 MR. NOLAN: Under the breadth of this claim.

25 PRESIDING JUDGE: Okay. Thanks.

1 MR. NOLAN: So now if we could go to slide 6.
2 So we point to figure 6 because your Honor will see that
3 this is a reference that Complainants made in its opening
4 claim construction brief at page 3.

5 So figure 6 is a flowchart that relates to how
6 one may operate these sensors.

7 If we start, and I think the key here is really
8 603 and 605 as shown on the slides.

9 So in 603, the device states it's detecting
10 whether it is being worn. If it's not being worn and the
11 answer is no, it would go back up to another state where it
12 may then try to detect whether it's being worn again.
13 That's what that shows.

14 If it is detected that it's being worn, you get
15 a yes there, it says operate the second sensor. That's
16 what this flowchart shows and that is consistent with what
17 we have in the specification here on the right.

18 I think later in my colleague's presentation for
19 Complainant, they will hang their hat very heavily on the
20 term that says may operate the second sensor.

21 We would point to though, that's not what the
22 figure shows. The figure shows that if you identify the
23 devices being worn, you automatically turn on that second
24 sensor, biometric sensor.

25 So this is a little different because we're not

1 looking at a threshold level of motion at least in this
2 description. You're just making a determination, if it's
3 worn, you turn the sensor on.

4 PRESIDING JUDGE: So based on figure 6, is it
5 that some amount of motion is determined that will trigger
6 the yes/no?

7 MR. NOLAN: This doesn't -- I don't think
8 discloses why -- how you make the determination. Now, if
9 we could go back to just to give you an aspect of the
10 claim, and maybe looking at the claim language would help.
11 If we can go back to slide 4.

12 Why this differs from the claim language at
13 issue that's in dispute is in 13, claim 13, the first
14 limitation is a user's body using at least one first sensor
15 of the electronic device.

16 So before that, above that it says "determining
17 whether an electronic device is worn on a part of a user's
18 body using at least one first sensor."

19 So that part -- so it very well may be that
20 that's what 6 is, but the difference is that this claim
21 doesn't automatically turn the biometric sensor on when it
22 determines that a user is wearing it because then you have
23 to get to the language that's in dispute to make the
24 determination on whether to turn the sensor on.

25 So that's why claim 6 -- excuse me, figure 6 in

1 its description really doesn't align with claim 13, because
2 it says determine whether the electronic device is worn,
3 first limitation of claim 13, and then it skips to the
4 third limitation of claim 13, which says if it's worn,
5 activate the biometric sensor.

6 PRESIDING JUDGE: Can you explain how what you
7 just said about the claim is being consistent with step
8 603, where the state of whether it's being worn is
9 identified?

10 MR. NOLAN: Well, what I'm saying is 603 is
11 consistent with the first limitation in this claim.

12 PRESIDING JUDGE: Okay.

13 MR. NOLAN: Determining whether electronic
14 device is being worn. 605 is consistent with the third
15 limitation of this claim, activating at least one second
16 sensor.

17 Nothing in figure 6 requires the highlighted
18 portion, which is taking a separate measurement of motion
19 to determine whether to activate the claim.

20 There's an additional step that's required in
21 claim 13 that we say doesn't have reasonable certainty
22 about how you interpret it. That's not included in
23 figure 6.

24 PRESIDING JUDGE: Okay. I understand. Thank
25 you.

1 MR. NOLAN: So now if we go, another portion of
2 8.2 is figure 5B. We'll turn to slide 7. If you see what
3 is happening in figure 5B. Figure 5B has three references,
4 522, 520, and 524.

5 Now, if you look at the beginning of when it
6 describes figure 5B, it says figure 5B is a view
7 illustrating an operation of measuring biometric
8 information. It says figure 5B, the electronic device may
9 attempt to measure biometric information according to a
10 period of about one minute.

11 In order to measure biometric information, the
12 second sensor or the biometric sensor must be operating,
13 has to be on. If it's off, they can't measure biometric
14 information.

15 Now, although it says that this -- do this for
16 about a minute, this minute that's being talked about here
17 is not what the Complainant has pointed to 522, you'll see
18 that later.

19 What this is talking about is you see in the red
20 on slide 7 it says that you operate a first timer. So what
21 happens here is you start a first timer during which you're
22 trying to measure biometric information. And then it says
23 that the device may attempt to measure biometric
24 information every minute by operating the first timer.

25 So the first timer is running, and you'll see in

1 the next slide that 520 is the end of the -- excuse me,
2 you'll see in slide 9 that 520 is the end of the first
3 timer.

4 If we could go back quickly to slide 8, just so
5 we are clear, again, we asked Complainants' claim
6 construction expert about 5B, and he acknowledges that 5B
7 is an operation for measuring biometric information.

8 Again, we think that's important because to
9 measure biometric information, the biometric sensor must
10 already be on. So you're not taking motion detection to
11 determine whether to turn it on.

12 If we can now proceed to slide 9 --

13 PRESIDING JUDGE: Before you do that, if you go
14 back to slide 7, figure 5B.

15 MR. NOLAN: Sure.

16 PRESIDING JUDGE: The time period identified at
17 522, that is the one minute to attempt to measure biometric
18 information?

19 MR. NOLAN: It is not, not according to this
20 specification and not according to -- if we can just go
21 to -- maybe if we talk about slide 9, I could clarify this,
22 your Honor.

23 PRESIDING JUDGE: Okay.

24 MR. NOLAN: So what you see, it says according
25 to various embodiments, the electronic device may measure

1 the motion of the electronic device in at least one time
2 interval. Now we get introduced 522, before the operation
3 of the first timer ends 520.

4 So the first timer is running, and then at that
5 point, you can consider trying to measure motion which is
6 time interval 522.

7 So the timer ending at 520 is running, and
8 you're attempting to measure biometric information. And
9 then the patent introduces 522, which in the example
10 discussed on slide 9, it says it may measure the average
11 motion that is acquired in at least one time interval 522
12 before the first timer ends.

13 PRESIDING JUDGE: All right. So 522 is
14 measuring motion?

15 MR. NOLAN: It's measuring motion to determine
16 whether there's a threshold. But as it's doing this, 520,
17 the timer is running. And that timer as we read earlier
18 said it was attempting to measure biometric information.

19 PRESIDING JUDGE: Okay. So does the period 522
20 when you're measuring motion, how does that correlate to
21 step 603 in figure 6?

22 MR. NOLAN: So if we can just pull up 603.

23 So I think in this instance, it doesn't
24 correlate with 603 because --

25 PRESIDING JUDGE: Does not.

1 MR. NOLAN: Yeah. Because this is not about
2 determining whether the device is being worn. 603 I
3 believe is talking about determining about whether the
4 device is being worn.

5 And I think your Honor is getting right on the
6 point here, because Complainant says, you will see the
7 first period of time is the time during which the device is
8 determining whether it's being worn.

9 And then in their papers, and we'll show you
10 this, they point to 522 to say look, in 522, it's
11 determining whether the device is being worn. But that's
12 not what the specification states.

13 So although they call 522 the first period, they
14 define the first period about when it's determining if the
15 device is being worn, but yet nothing that we just looked
16 at talks about determining whether it's being worn, nothing
17 I mean with respect to 5B.

18 PRESIDING JUDGE: All right.

19 MR. NOLAN: So what is happening here is
20 you're -- again, an important aspect of it, they will come
21 up and point in their slides and papers and this is the
22 first period. First period in their mind is about
23 determining whether the device is being worn, and nothing
24 in this disclosure is about determining whether the device
25 is being worn.

1 What is the sponsor of 522. 522 is measuring
2 this threshold motion, because as we saw when we talked
3 about the first timer, the first timer is trying to measure
4 biometric information. 522 then starts measuring motion as
5 described here.

6 And if that motion meets a certain threshold or
7 doesn't meet a certain threshold, there will be a decision
8 that is made.

9 You see at the bottom of slide 9, we talk about
10 it meeting a threshold. Now, the threshold you'll see when
11 you read through the rest of 5B, it can continue to operate
12 the biometric sensor or, as we'll show you during 524, if
13 the threshold is such that it doesn't want to operate the
14 biometric sensor, the biometric sensor will be off and then
15 524 is about determining more information about the motion
16 to see if there's a motion change that you may want to do
17 something with.

18 So if we go to slide 10, what we would offer
19 you, is again we talked at the beginning of this discussion
20 about the breadth of claim 13 in the latter half of this
21 that talks about measuring biometric information and motion
22 at the same time to determine whether you should do
23 something with the sensor.

24 And we would offer that what is most akin or
25 most aligned in 5B, at least what's being disclosed for

1 522, is this concept of measuring biometric information and
2 measuring motion at the same time that you see in the
3 second to last claim limitation of claim 13.

4 PRESIDING JUDGE: If you can go -- so in your
5 view, the 522 corresponds to during detecting the biometric
6 information, acquiring information about motion?

7 MR. NOLAN: If it aligns with anything, that's
8 the one it aligns closest with.

9 I do think we have a problem with the claim term
10 as a whole and trying to align it with any of these
11 disclosures. But why we're pointing this out to your Honor
12 is because it clearly doesn't relate to determining whether
13 the device is being worn and determining whether to turn
14 the biometric sensor on, because during a period the first
15 time in 520, the device is already trying to get biometric
16 information, which means the biometric sensor must be on.

17 So the biometric sensor is on and the motion
18 sensor is on, the only part of this claim that discusses
19 that is this during the detecting language.

20 So if there's an alignment, that's the closest
21 alignment in Respondents' view.

22 PRESIDING JUDGE: All right. So just going back
23 to the claim language then, second-to-last claim element
24 that's highlighted, "acquiring second information on motion
25 of the electronic device." What, in your view, is that

1 second information?

2 MR. NOLAN: I think as you'll see here, it's
3 talking about whether a 524, we'll get into a little more
4 detail, it talks about whether or not there is a change in
5 the motion. And then you may do something with it.

6 And so how we read this, if 522, the threshold
7 is met, then you don't really even need to get to 524.
8 Because what you'll see, in 522 it talks about taking the
9 average motion. And then maybe we can just jump to --
10 let's go to slide 11 real quick.

11 See now it talks about 524. It says "when the
12 measured motion of the electronic device does not satisfy
13 the selected or specified reference, the electronic device
14 may determine whether the motion" is changed to satisfy the
15 threshold. And that's in 524.

16 If it's satisfied the threshold, you don't need
17 524, you would just continue to operate the biometric
18 sensor. If it doesn't satisfy it, then one thing that's
19 important here you see because it didn't satisfy it, it
20 says you don't need to be measuring biometric information.
21 The electronic device may not measure the biometric
22 information because it's determined it didn't meet the
23 threshold so I don't need to measure.

24 Again, this is why to the extent we think this
25 aligns with anything, if we can go to slide 12, we think

1 it's kind of these last two portion that we looked at.

2 Remember we looked at during the detecting
3 biometric information, you acquire that second information,
4 so you acquired it, the threshold wasn't met and so you can
5 inactivate. You don't need the biometric sensor on
6 anymore, so you can inactivate it.

7 So 524 may be taking additional information to
8 see if that change is something needs to be done again.

9 To the extent this aligns with any part of the
10 claim, I don't think it's a correct alignment, it would
11 align with this. But it's certainly not about the aspect
12 of the specification that's in dispute and certainly not
13 how they align it to say 522 is about determining whether
14 the device is being worn.

15 So if we can go to slide 13. And we just want
16 to allow your Honor to appreciate this. We're not --
17 Respondent is not just simply saying that Complainant is
18 defining 522 as what would be the first period and 524 as
19 what's being the second period.

20 We've given you an excerpt from Complainant's
21 responsive brief where they say precisely this. They
22 say -- they also say it in the opening brief that -- in
23 their opening brief at 7, it says in the opening brief, it
24 says figure 5B below depicts this scenario using sequential
25 timing periods 522 first period and 524 second period.

1 So you'll also see later in their papers when we
2 talk about claim 15, they call 522 the second period and
3 524 the third period.

4 PRESIDING JUDGE: Okay.

5 MR. NOLAN: That is how they walk through this,
6 and we do appreciate it's quite dense, your Honor, so we
7 thank you for taking the time to get into it.

8 But you'll see this is not -- 522 is not about
9 determining whether this is being worn. It's not the first
10 period as it is defined by Complainants in their papers.
11 So although that was pretty detailed, that was really just
12 the problem we're trying to define what the first period
13 and second period of the claim -- of this claim limitation
14 are.

15 We also have to deal with the shortly before and
16 immediately after these terms of degree, because not only
17 do you have to understand what the first period is and what
18 the second period is, there is a temporal relationship
19 between those.

20 The second period of time must come shortly
21 before the first period of time or immediately after the
22 first period of time.

23 We think that Complainant in its claim
24 construction seeks to rewrite the claim in hopes to salvage
25 something to say you could understand it by not addressing

1 the words of degree aspect shortly before and immediately
2 after, and revising the claim to focus on when the first
3 period of time ends to allow this to either mean there's an
4 overlap for the shortly before or the immediately after
5 occurs after.

6 So if we could go to slide 14, maybe the visual
7 will allow you to understand it. Up on the top, we have
8 the claim term. It says "a second period of time shortly
9 before and immediately after the first period of time."

10 This claim language doesn't focus on the end of
11 the first period of time. It's not saying shortly before
12 the end of the first period of time, the second period of
13 time happens or immediately after the end of the first
14 period of time.

15 The claim language doesn't say that. But in the
16 specification and in other claims, when Complainant wanted
17 to focus on the end of the first period of time, it
18 expressly stated so.

19 So I'll take you first on the right of slide 14
20 is in the specification, you see it seems to be talking
21 something similar to what's in claim 13. And I think
22 Complainant will suggest that claim 13 echoes the
23 specification. And we would suggest it doesn't.

24 Because if you look at the green highlighted
25 text, you'll see something different in the specification.

1 It says "when a selected or specified period of time
2 passes," i.e., when it ends, you're going to do something.

3 And similarly, claim 15, which when they chose
4 to do it, and this is another we're going to talk about,
5 when they're talking about the third period of time, it
6 says "immediately after the second period of time passes."

7 That language doesn't appear in claim 13. And
8 that's important, because passes means focus on the end of
9 the time period. When that is absent, it changes the whole
10 meaning of shortly before or immediately after.

11 Because claim 13 is written that the second
12 period of time is shortly before the first period of time,
13 not shortly before the end of the first period of time.

14 PRESIDING JUDGE: So just let me ask a question,
15 then. So for -- on this issue, is it your view that the
16 claim can include overlapping periods of time?

17 MR. NOLAN: We don't think it can as written,
18 your Honor.

19 PRESIDING JUDGE: Okay.

20 MR. NOLAN: In fact, we don't know exactly what
21 the claim can include. That's the whole point, that we're
22 here is because there's no reasonable certainty.

23 But I think as drafted, shortly before means
24 before. It doesn't mean concurrent with, it doesn't mean
25 at the same time. Before means before.

1 PRESIDING JUDGE: Sure. And doesn't a period of
2 time suggest a beginning and an end? Like if you have a
3 period of time, like, you know, an appointment, it runs for
4 a period of time, or a meeting for a period of time, it has
5 a beginning and an end. That is the period of time of the
6 meeting.

7 So if you have something that happens before a
8 meeting, it would be before the meeting starts. And if
9 it's after, it would be after the meeting ends.

10 MR. NOLAN: I think that is exactly what before
11 means and what after means. So we would agree with you,
12 yes. If I had -- but what you'll see, what Complainant is
13 saying is shortly before, in order to try to make this
14 align with disclosure in the specification, they say well,
15 shortly before really means overlapping with the end of the
16 first period of time.

17 PRESIDING JUDGE: Okay. And is that -- is that
18 the parties' disagreement here?

19 MR. NOLAN: I think the parties' disagreement, I
20 think you also put it very aptly. A period of time
21 suggests some period of time, some length of time.

22 From looking at all of this, we have no idea,
23 you know, how long is the first period of time, how long is
24 the second period of time. And you'll see when we get into
25 claim 15, it becomes more important because they actually

1 compare the lengths of the first period of time and the
2 second period of time without knowing lengths of time, it's
3 also hard to --

4 PRESIDING JUDGE: Yeah. Does the length of time
5 actually matter as long as there is a length of time?

6 MR. NOLAN: Well, I think it could matter
7 because what does shortly before mean? So shortly before a
8 length of time that is an hour may be a minute, two
9 minutes, 10 minutes.

10 PRESIDING JUDGE: Okay.

11 MR. NOLAN: Shortly before a length of time
12 that's a second probably means something different.

13 But again, there's nothing in the specification
14 that allows you to understand this. And you can see from
15 their own definitions, shortly -- the first period is when
16 it's determining whether it's being worn. Any time to
17 determine when it's being worn, and then the second period
18 is when it's taking some motion to determine whether to do.

19 You will see they changed a few times what this
20 means. Now I think they're saying it's the second period
21 of time is when you're taking motion to either determine
22 whether to activate or deactivate the device.

23 I mean, the point of all of this is to give the
24 public knowledge of what infringes and what does it mean.

25 So without any delineation about those terms of

1 degree, like shortly before or immediately after, without
2 any understanding of what the first or second period of
3 time, it's just impossible to put reasonable certainty on
4 these terms to allow public notice.

5 PRESIDING JUDGE: Another question for you. In
6 your view, is there a difference between shortly before and
7 immediately after in terms of how much before and how much
8 after the acquiring occurs?

9 MR. NOLAN: From our view, I would say that I
10 think people are a little more comfortable knowing
11 immediately after, because I think immediately after
12 indicates it follows when the time ends, it happens
13 immediately.

14 PRESIDING JUDGE: Yes.

15 MR. NOLAN: I don't know that people think the
16 same as shortly before. So I don't know that people would
17 have seen shortly before as a continuum. Whereas I think
18 when you say immediately after, you say I did X and
19 immediately after I did X, I did Y. I think people would
20 say there's a linear, nothing happened in between.

21 PRESIDING JUDGE: So perhaps there's no
22 intervening step or something with respect to immediately
23 after, whereas shortly before as perhaps a relative term
24 compared to immediately after is something that's more
25 flexible.

1 MR. NOLAN: I think yes. From a perspective of
2 a term of degree, I think there's a more difficult job with
3 understanding shortly before and understanding immediately
4 after.

5 PRESIDING JUDGE: All right. Okay.

6 MR. NOLAN: But again, I think that maybe
7 there's less of a temporal issue with immediately after
8 because if it's an hour or if it's a second, immediately
9 after means it happens the next thing.

10 But shortly before, if the period is an hour or
11 a few seconds I think becomes more problematic.

12 PRESIDING JUDGE: I understand.

13 MR. NOLAN: If we could now if to slide 15, your
14 Honor.

15 So again, I think this is not earth-shattering
16 things, but as you can see, when Dr. Young was asked, he
17 said before means it happens before the time reference.
18 This is Complainants' own expert. Before means it happens
19 before the time reference. This is not about an overlap
20 with the time reference, as you will see is their attempts
21 to rewrite these claims.

22 And so one thing, if we could now go to -- one
23 thing I think that is going to be interesting is we showed
24 you claim 13 and we showed you claim 15 to see how it
25 differs, and we showed you the specification.

1 I believe when you'll see Complainants'
2 presentation on this, in suggesting that an overlap can
3 occur and they're not trying to rewrite the claims, in
4 their slide 30, they will point to claim 1 and claim 7.
5 And this is for what they're trying to support for the
6 overlap in what we say is the rewriting of the claim.

7 We find it interesting that they don't point to
8 the claim language at issue, they point to other claim
9 language and suggest well, maybe this other claim language
10 in different claims allows for overlap and so that's how
11 this court should construe claim 13.

12 While clearly this is part of the intrinsic
13 record, you don't use other claims to rewrite the claims at
14 issue.

15 So another modification that they make, if we
16 can go to slide 16 of Samsung's presentation, to slide 16
17 of Oura's presentation, thank you.

18 So on the left we have figure 5B, which we spent
19 a great deal of time discussing and your Honor was very
20 patient with me in going through it. And on the right, we
21 have something that's not in the patent. This is
22 Complainants' in Complainants' brief and how they're
23 explaining what the shortly before means.

24 They now say the second period of time begins
25 before the timer 520 ends, and that's the shortly before.

1 But again, this is their modification of the
2 intrinsic record. This is not what is actually in the
3 patent.

4 And I know that they have selected some periods
5 of time during the first period that it would begin. They
6 arbitrarily put this in. I guess this is what they would
7 consider shortly but we have no idea what that would mean.

8 Again, this is their modification of the figures
9 in attempts to explain why the overlap is supported by 5B,
10 because that's the figure that they really rest their hat
11 on in trying to define this calculation.

12 PRESIDING JUDGE: So my understanding is the
13 dispute is twofold, that it's not clear what shortly before
14 means in terms of magnitude; right?

15 MR. NOLAN: That's one issue that we raise.

16 PRESIDING JUDGE: Okay. And do I understand
17 correctly that another is that in your view, the claim
18 requires two distinct nonoverlapping periods of time?

19 MR. NOLAN: Yes. And I guess I would say that
20 we have three issues, two of which are related.

21 So the first issue is we're not exactly sure how
22 one understands what the first period of time is and what
23 the second period of time is.

24 PRESIDING JUDGE: Okay.

25 MR. NOLAN: A second dispute we have is we think

1 that shortly before and immediately after, as your Honor
2 says, does not allow for overlap between the first period
3 of time and the second period of time, as they offer.

4 PRESIDING JUDGE: Okay.

5 MR. NOLAN: And the third dispute we have is we
6 don't know what shortly before or immediately after means.

7 And as we discussed, I think that we would say
8 more on the shortly before. If we take immediately after
9 means no intervening things, it has to happen immediately
10 at the first period of time, whatever that first period of
11 time may mean.

12 So I would say that's how I would distill the
13 three agreements, and because of an absence of clarity on
14 those arguments, there's just not reasonable certainty as
15 to what this claim limitation means.

16 PRESIDING JUDGE: Okay. Understood. Thank you.

17 MR. NOLAN: So if we can go to slide 17, and I
18 won't waste your Honor's time much on this. But again, we
19 just provide you some very well-considered Federal Circuit
20 precedent that your Honor, I'm sure understands, that it's
21 not her job to rewrite the claims. The claims are written
22 as written. They do not include before the first period of
23 time passes. And even if they point to areas in the
24 specification that suggest that, that's not what they have
25 claimed.

1 If we go to slide 18. I know in their
2 Complainants' brief, they suggested that Respondents focus
3 their indefinite argument on their infringement intentions
4 and other positions and not the intrinsic record. I hope
5 since you indulged me so much time in going through,
6 Respondents' position is based on the lack of insight in
7 the intrinsic record.

8 But we just give you this as evidence of the
9 difficulty in providing reasonable certainty about this
10 claim term.

11 When your Honor had Complainants put forward
12 their initial infringement contentions, when they were
13 talking about the first period of time, they described it
14 as a period of time when the electronic ring is not being
15 worn. And now in claim construction, they talk about it as
16 when the device uses the first sensor to detect whether it
17 is being worn.

18 Again, because there's no reasonable certainty
19 here, you could kind of make this first period of time
20 whatever you want to make it to try to show infringement,
21 and that's one of the problems, that if you're out there
22 trying to make these devices and a claim has that much
23 flexibility, it's not providing reasonable certainty to the
24 public and notice.

25 Again, I think your Honor can look at the

1 absence of insight in the intrinsic record, but we just
2 offer this as almost anecdotal evidence to show there's a
3 distinction.

4 Now, this is for the first period of time. If
5 we can now see what they said throughout this litigation
6 about how one defines the second period of time.

7 In their infringement contentions, they first
8 describe it as the period of time immediately before the
9 third period of time, which comes into play in claim 15,
10 and the third period of time is the period of time ending
11 after a user wakes up.

12 And then they went to a new definition, which
13 was in their brief, and they have I think two definitions
14 arguably in their opening brief, and it says "when the same
15 first sensor is used to acquire motion information for the
16 electronic device, which in turn helps determine whether to
17 activate a second sensor."

18 And then they also describe it as "the period of
19 time shortly before or immediately after it is determined
20 that the electronic device is worn on a part of the user's
21 body."

22 I think they have actually offered another
23 definition now, if we can go to Samsung's slide 19 as well.
24 Now I think you'll see on the top here -- if you could go
25 one before this. My apologies, your Honor. I gave my

1 colleague the wrong slide reference.

2 So if you can go to slide 17. Now the second
3 period of time is determining whether to activate or
4 deactivate the second sensor.

5 So again, just varying degrees of definitions of
6 the second period of time.

7 We offer, your Honor, the intrinsic record as
8 really why -- the intrinsic record just doesn't provide
9 reasonable certainty. But the fact that Complainant can
10 jump to many different definitions for infringement or
11 throughout the claim construction process just shows an
12 absence of reasonable certainty.

13 If we could just return to Oura's presentation
14 slide 20 for a conclusion. In light of all this, your
15 Honor, we don't think that Complainants' claim construction
16 is supported or appropriate, and the conclusion for this is
17 that there's just a lack of reasonable certainty around
18 this term.

19 And in view of that, your Honor should hold the
20 claim term indefinite and thus the claim indefinite and its
21 dependent claims indefinite as well.

22 The parties have thought that it would be best
23 to also discuss claim 15. I'll transition to that, unless
24 your Honor has any other questions about claim 13.

25 PRESIDING JUDGE: Can you go back to your

1 slide 18.

2 MR. NOLAN: Sure. Slide 18 I believe she wants.

3 PRESIDING JUDGE: Right. And you highlight the
4 two statements, "a period of time when the electronic ring
5 is not being worn," "when the device uses a first sensor to
6 detect whether it is being worn."

7 I guess I'm not really seeing that those are
8 necessarily -- they are stated differently, but I don't see
9 them as necessarily inconsistent with each other.

10 So it's when the ring is not being worn versus
11 whether it's being worn, which is broader, right, because
12 it would also include it not being worn; right?

13 MR. NOLAN: What I think the problem has is you
14 have to consider these in terms of the whole claim
15 limitation. So this is shortly before or immediately
16 after.

17 So is the first period of time the time from
18 which somebody gets the device, leaves it on their --
19 purchases it, doesn't open it up, gets the device, leaves
20 it on their night stand? Is that the whole first period of
21 time? What does shortly before that mean, or immediately
22 after?

23 Or is it only the time when it's deciding
24 whether it's on or off?

25 I mean, I do think that there is differences

1 between those two terms, and those differences do become
2 problematic when you have to put a temporal relationship to
3 when the second period of time is occurring.

4 So we would offer that they are distinct, and
5 the fact that they're different makes -- the fact that you
6 can define these differently can make the temporal
7 relationships between the second and the first period of
8 time difficult.

9 Now, I do appreciate they both do focus on a
10 concept of whether it's being worn or whether it's
11 detecting it's being worn. But we do think they're
12 distinct, your Honor.

13 Again, we just offer this as evidence of how
14 shifting this can be and how difficult these claims are to
15 understand, particularly when you have to have the temporal
16 relationship between that.

17 I think the intrinsic record and claim language
18 itself is sufficient for your Honor to find that this term
19 is indefinite.

20 PRESIDING JUDGE: Okay. So let's assume for the
21 sake of argument that the first period of time is the
22 second articulation. When the devices use the first sensor
23 to detect whether it's being worn. Let's just assume for
24 the sake of argument that that's correct.

25 MR. NOLAN: Okay.

1 PRESIDING JUDGE: How does that impact your
2 argument?

3 MR. NOLAN: Well, I guess the question becomes
4 if that's what is happening, then that's not support by
5 figure 5B, which they point to. Because they say 522 is
6 the first period of time, and 522 is not about determining
7 whether the device is being worn.

8 So the first thing I would say, if that's what
9 your assumption of the first period of time is, what they
10 are relying on to define this temporal relationship between
11 the first period of time and the second period of time
12 falls apart. Because 522 doesn't talk about that.

13 The only thing it talks about being worn is
14 figure 6 where it says 603 determine if it's worn, 605 turn
15 it on.

16 So I then think it becomes difficult on let's
17 determine what are we doing before that if it's when it's
18 being worn, because the claim says second period is before,
19 and the claim says what is immediately after.

20 So there's a few different issues with the claim
21 that even if you provide clarity to one, unfortunately for
22 the Complainant, that clarity to one aspect doesn't rectify
23 the deficiencies with the other aspects of the claim.

24 PRESIDING JUDGE: Okay.

25 MR. NOLAN: If we could go to claim 15, your

1 Honor, I think we can go through this a little more quickly
2 because I'm sure you're already sick of first period of
3 time, second period of time, and now unfortunately I have
4 to introduce a third period of time.

5 So the claim part that we focus on here again,
6 it's in the middle, your Honor, where it says "a third
7 period of time, which is shorter than the first period of
8 time," so this aspect of this claim limitation is talking
9 about a reactivation of the sensor.

10 So this may be what we were talking about in
11 kind of 524, when the sensor is off and you're determining
12 whether you want to turn it back on.

13 So in Complainants' brief, you'll see they go
14 back to figure 5B and now 524 they don't call the second
15 period of time, they call it the third period of time. And
16 522 they don't call the first period of time, they call it
17 the second period of time.

18 But what's really problematic here is this last
19 part, is the third period of time is shorter than the first
20 period of time.

21 So if we can now go to slide 15 and we can look
22 at -- excuse me, if we could go to slide 22, and if we
23 could -- so we just give you the entirety of the claim
24 language here.

25 So you acquire this additional information

1 during this third period of time, and then that third
2 period of time is shorter than the first period of time.
3 And again, we know the third period of time happens
4 immediately after the second period of time passes, so they
5 use pass here, they have made it at least more definitive
6 when the third period of time happens.

7 But there's no insight. If something happens
8 during this third period of time, you can activate the
9 second sensor, you're turning it back on, the biometric
10 sensor.

11 But the problem here is there's nothing, and if
12 you read the specification, third period of time you'll see
13 doesn't get mentioned that often. And nothing that gives
14 you any insight in how long it has to be.

15 And as your Honor appreciates, we have concerns
16 with the first period of time, as we discussed with claim
17 13.

18 And although I can -- Complainant has taken
19 issue with Respondents pointing to the fact that claim 15
20 requires a third period of time be shorter than the first
21 period of time, we just point to this other evidence that
22 look, there's nothing -- the first period of time, as I
23 think your Honor said earlier, is a set period of time.
24 It's a meeting for an hour. It's something.

25 There's nothing that allows you to understand

1 the length via the first period of time or second period of
2 time.

3 And we just think that's even more evidence of
4 the ambiguity that's in 13. Complainant will suggest claim
5 15 should not impact claim 13, but Respondent would offer
6 -- the same claim term is used in multiple claims. If it's
7 kind of indefinite in one claim, that does impact whether
8 you can provide a definition to it in another claim.

9 We would then go to slide 23, your Honor. And
10 we just offer you this, because this is largely like the
11 sum total of what the specification says about the third
12 period of time.

13 So it says on the top here at column 21, lines
14 41 through 46, it says "According to various embodiments,
15 the instruction may be set to configure the processor to:
16 Acquire additional information on the motion of the
17 electronic device using at least a part of the at least one
18 first sensor for a third period of time, which is shorter
19 than the first period of time."

20 So here is the claim language. It doesn't
21 really provide any insight.

22 There's also some discussion that "According to
23 various embodiments, at least one of the second period of
24 time and the third period of time may be set to include the
25 time point when the first period of time passes."

1 Again, nothing in the specification that really
2 allows you to delineate much of any information about how
3 long this third period of time is and how then you would
4 make that comparison to the first period of time.

5 And I've already mentioned this, your Honor, but
6 if we look at slide 24, again this is just to say you saw
7 it earlier when we talked about claim 13, Complainant says
8 well, 522 is about the first period of time and 524 is
9 about the second period of time.

10 Well, now with claim 15 for figure 5B, they're
11 saying no, really 522 was about the second period of time,
12 and 524 is about the third period of time.

13 So again, the ability to just pick and choose
14 and say well, this must apply here and must apply there is
15 really a function of there's no really parameters that
16 confine this first period of time or second period of time
17 or third period of time and what it may mean, and just
18 makes -- there's a lack of reasonable certainty around all
19 this, particularly when you add in the temporal
20 relationships of it needing to be shortly before or
21 immediately after or to compare the lengths of these times
22 as is required by claim 15 to compare the length of the
23 first period of time and the length of the third period of
24 time.

25 And if we go to slide 25, just similarly, we

1 just offer this as we know the intrinsic record controls
2 here, but this is just what we've seen from Complainants on
3 what this third period of time can mean.

4 So you've seen this before, where it's a period
5 of time beginning immediately after the second period of
6 time (e.g. the period of time when the user wakes up.

7 Or it could be in the second sentence, "The
8 period of time that immediately follows the second period
9 of time and during which additional information regarding
10 the motion of the electronic device is collected by at
11 least a part of the at least one first sensor and used to
12 determine whether to activate the at least one second
13 sensor."

14 Then again the device uses further information
15 about the measured motion to decide whether to reactivate
16 the second sensor after it was inactivated.

17 Now, maybe the second and third have some
18 relationship and some similarities, but the just ability
19 for all of this to be defined and whatever you need to
20 define it at that moment to show infringement kind of
21 suggests lack of reasonable certainty.

22 We tried to understand the first period of time,
23 we tried to understand the second period of time, we tried
24 to understand the third period of time. Maybe when Counsel
25 gets up, he'll explain exactly what shortly before means

1 and how long that is or maybe what immediately after means,
2 and maybe we'll get some insight.

3 But if we can go to the final slide 26, again,
4 as with claim 13, we just don't see that there's reasonable
5 certainty of the first period of time, second period of
6 time, third period of time, what it means to be shortly
7 before or immediately after, how one compares these
8 lengths.

9 And so clearly for claim 15, how one compares
10 the lengths of this when there's no insight into how long
11 these periods need to be is just another reason to find a
12 lack of reasonable certainty.

13 With that, your Honor, we think that claim 15
14 and those that depend from it should be held invalid.

15 Now, claim 15 does depend from claim 13, so if
16 you hold claim 13 indefinite, it knocks out claim 15 as
17 well. But claim 15 has an independent reason for why
18 indefinite even separate and apart from claim 13.

19 PRESIDING JUDGE: All right. And I want to just
20 make sure I understand that point you just made, which is
21 just, setting aside claim 13 for the sake of argument here,
22 in your view, claim 15 is additionally indefinite because
23 why?

24 MR. NOLAN: Well, because we don't know how to
25 define the first period of time, we don't know how to

1 define the third period of time, and certainly if we don't
2 know how to define them, we can't come up with a way to
3 understand how the third period of time is shorter than the
4 first period of time.

5 There's no intrinsic support or anything in the
6 record that tells us, you know, this is how what the first
7 period of time is, this is what the length is going to be,
8 this is what the second period of time is, this is what the
9 third period of time is, this is what the length is.

10 So there's no objective information or certainty
11 about how we are defining the first period of time and the
12 third period of time. How can the person out there, the
13 public, have reasonable certainty as to when the first
14 period of time is longer than or, as the claim says, when
15 the third period of time is shorter than the first period
16 of time?

17 PRESIDING JUDGE: So then it seems to me that
18 your argument is we don't know what the first period of
19 time is, we don't know what the third period of time is.

20 Because if you know what they are, then you can
21 tell whether or not it's longer or shorter than the other
22 one; right? I mean, you have a period of time, this is --
23 at a meeting and it was an hour and another meeting was a
24 half an hour, and the half hour meeting is shorter than the
25 hour meeting.

1 So I mean, you can do that.

2 MR. NOLAN: You could do that. But I suggest
3 when my opposing counsel gets up, he's not going to
4 delineate time periods in such ways as simplistic as your
5 Honor has put -- if they said look, the first period of
6 time is X amount of time, the third period of time is Y
7 amount of time, then a comparison could be made.

8 But if the first period of time is when it's not
9 being worn or when it's determining whether it's being
10 worn, even though that's inconsistent with 522, because
11 522, the biometric signal and all that is already on, what
12 does it mean to the time period when it's not being worn?
13 What does it mean to the time period when it's trying to
14 determine whether it's being worn? That becomes very
15 subjective. Then how do you make that comparison to when
16 you're determining whether to reactivate the sensor as now
17 what they're defining the third period of time, if we try
18 to focus in on their most recent definition of the third
19 period of time.

20 PRESIDING JUDGE: I'm not sure that's subjective
21 as much as it's functional; right?

22 MR. NOLAN: It's -- well, when it's not being
23 worn, I don't know how that's functional because it's just
24 not being worn.

25 I would agree with you what they're saying now

1 that when it's determining whether it's being worn, that
2 has some function to it, because you could try to delineate
3 when did it start to try to determine and when did it
4 conclude to determine.

5 But again, there's a problem here is when you
6 can kind of just pick and choose what the first period of
7 time is, that's not really shown by the intrinsic record.
8 Now they're saying it was before -- when no one is wearing
9 it, first period of time. Now it's like well, that's
10 problematic when they saw our indefinite argument, so now
11 they're like let's come up with something different. Oh,
12 accident it's when it's trying to determine whether it's
13 being worn.

14 They point to 522. 522 is not about that.
15 That's one of the evidence of the problems here, is you can
16 continue to redefine these first and second periods in any
17 way.

18 But to your basic question, if you know the
19 length of the first period of time and if you know the
20 length of the third period of time, certainly you can make
21 the objective comparison as to whether one is longer or
22 shorter.

23 So really, the crux is I think what your Honor's
24 initial point was is we just really don't know kind of
25 definitions of the first period, second period and third

1 period, which then really make the temporal relationships
2 problematic.

3 PRESIDING JUDGE: Thank you.

4 MR. NOLAN: Thank you for indulging me so long
5 today, your Honor.

6 PRESIDING JUDGE: Good morning.

7 MR. PENSABENEE: Good morning, your Honor. Mark
8 Pensabenee for Samsung Complainants.

9 PRESIDING JUDGE: So I know you have a
10 presentation to get through, and I want you to do that.
11 Along the way, what I would -- what would be very helpful
12 to me is for you to identify specifically what the periods
13 of time are, and as you're doing that, if you can provide
14 an example of those periods of time based on, you know --
15 it can be a hypothetical, I'm fine with it. If there's
16 support in the specification, point to it, but what exactly
17 is the first period, how does it relate to the second
18 period, how does it relate to the third period. That would
19 be really helpful.

20 MR. PENSABENEE: Absolutely, your Honor. I'd be
21 more than happy to answer that right up front and get into
22 more detail in my presentation.

23 PRESIDING JUDGE: Okay.

24 MR. PENSABENEE: The first period of time quite
25 plainly is the period of time during which the device is

1 using motion in part to determine whether or not the device
2 is being worn.

3 PRESIDING JUDGE: What do you mean by "in part"?

4 MR. PENSABENEE: In other words, you can have
5 other things come into the equation. In other words, it
6 can look at motion and other inputs to make the
7 determination. This is straight from the claim. But
8 motion has to be a part of that.

9 But during the period when the device is using
10 motion as part of its determination of whether it is being
11 worn, that is the first period. Second period then becomes
12 when a device is using motion to determine whether or not
13 to activate the second biological sensor.

14 It's clearly defined by the purpose or the use
15 to which the motion information is being put.

16 PRESIDING JUDGE: Okay. And third?

17 MR. PENSABENEE: And the third period of time is
18 if you look at the claim 13, and I'll get into detail, it
19 ends with the sensor or biological sensor being deactivate
20 or inactivated in the language of the patent.

21 Claim 15, the third period, it's now again using
22 biological -- motion information to determine whether or
23 not to reactivate the sensor.

24 So all three periods are defined by what the
25 motion information is being used for.

1 PRESIDING JUDGE: Okay. In your view, can the
2 first period of time and second period of time overlap?

3 MR. PENSABENEE: Absolutely, your Honor. And
4 I'll show you some clear support for that in the
5 specification as well as the opinion of our expert.

6 PRESIDING JUDGE: All right.

7 MR. PENSABENEE: And also, your Honor, I didn't
8 want to let you think I forgot. You asked a question
9 earlier that you were going to come back to and I'd like to
10 answer that now with regard to experts. And I think that
11 with regard to the first two terms where there's an
12 indefiniteness argument, I think it is important for your
13 Honor to consider the expert testimony because that would
14 inform the court as to how a person of ordinary skill would
15 understand the terms. And also it helps explain what I
16 will confess is a rather dense patent specification.

17 As to the third term, which we will get to later
18 today, I don't think the court needs to consider expert
19 testimony at all, and I think it would be improper to
20 consider the expert testimony that Oura offers, which
21 contradicts the intrinsic evidence. Again we'll get to
22 that later, but that's our position on the expert
23 testimony.

24 PRESIDING JUDGE: Can you remind me, I
25 understand one of the experts was deposed.

1 MR. PENSABENEE: Correct. Samsung's expert was
2 deposed.

3 PRESIDING JUDGE: Samsung chose not to depose
4 Oura's expert?

5 MR. PENSABENEE: Correct.

6 PRESIDING JUDGE: Thank you.

7 MR. PENSABENEE: I'd like to start off your
8 Honor by talking about the purpose of the '675 patent and
9 what it's about. It's about a biometric sensor and a
10 wearable electronic device. And the problem is that having
11 a biometric sensor and wearable device where the battery is
12 necessarily going to be limited in size and capacity, if
13 you constantly run the biometric sensor, it's going to run
14 the battery down quickly.

15 Another problem is oftentimes if you have a lot
16 of motion, that might make it difficult to obtain accurate
17 biological or biometric information.

18 So what this patent proposes is a solution that
19 uses motion to help determine when the device is worn and
20 when to activate the second or biometric sensor. And
21 that's the key here, is using motion to activate and
22 deactivate the sensor. There's nothing to do with specific
23 periods of time. The specific periods of time don't have
24 any importance in and of themselves. It's the relationship
25 of the time periods and what's being done during those time

1 periods that's really important.

2 We walk through claim 13, just at a high level,
3 we see that it includes all of these concepts. It first
4 talks about determining whether or not the device is worn,
5 it does that using the first sensor, which is the one that
6 detects the motion.

7 It then, after it detects it's being worn, it
8 acquires motion again, but here it's using the motion to
9 determine whether or not to activate the second sensor, the
10 biometric sensor.

11 Once that sensor is activated, it keeps
12 detecting biometric information or reads the information,
13 but at the same time, it's also acquiring information on
14 motion such that it will inactivate or deactivate the
15 biometric sensor if the motion meets a certain threshold.

16 Now, the dispute here relates to the second
17 claim limitation which sets forth the different time
18 periods or the temporal relationship between these
19 different things. Oura, as you've heard, takes the
20 position as indefinite, Samsung on the other hand has
21 proposed a construction that we think is firmly rooted in
22 the claim language itself and also the patent
23 specification.

24 I think it's important to note that Oura doesn't
25 propose any alternative constructions, they don't say if it

1 is definite, it has to mean this. They're all in on
2 indefiniteness.

3 And I know your Honor knows all well, but I
4 think it is worth emphasizing that the Supreme Court has
5 made clear that absolute precision is not required for
6 claim construction for definiteness. All that's required
7 is reasonable certainty, and that a claim is not indefinite
8 if one of ordinary skill with the aid of the specification,
9 and that's important, would understand what is claimed.

10 You don't look at the claims in the abstract
11 themselves. You look at it in the context of the
12 specification.

13 But because we're dealing with a word of degree,
14 and we'll agree it is a word of degree, it's important to
15 note that again the Federal Circuit has held that these
16 words of degree are not inherently indefinite. All that is
17 required is some standard for measuring. In other words,
18 there must be some objective boundaries such that one of
19 skill in the art reading the claims in view of the
20 specification would understand what is claimed.

21 PRESIDING JUDGE: Can you do me a favor and go
22 back to the claim language?

23 MR. PENSABENEE: Sure.

24 PRESIDING JUDGE: So first step, "determining
25 whether an electronic device is worn," and I think you said

1 that that is done by determining motion; right?

2 MR. PENSABENEE: Right. So it refers to using
3 at least one first sensor and the parties agree this first
4 sensor is the one that determines motion.

5 PRESIDING JUDGE: Okay.

6 MR. PENSABENEE: Now, I think your Honor might
7 be a little confused because it then goes on to talk about
8 acquiring first information on motion after it has already
9 used motion for the wear detection, so I'll admit that's a
10 little confusing.

11 PRESIDING JUDGE: Well, my question is how does
12 the first and second steps relate to each other, if at all?

13 MR. PENSABENEE: So the first step is you've got
14 this period of time during which the device is going to be
15 checking whether or not it's worn, and it's going to use
16 motion to do that.

17 Now, it could wait until after that first period
18 of time expires, in other words the period when the device
19 has stopped checking for motion for wearer detection, and
20 say then hey, if there's a wearer, we'll start looking for
21 motion for the biological -- or biometric information.

22 Alternatively, if during this first period of
23 time, in the middle of it, it says hey, wait, there's
24 motion, let's check to see if we're worn, and if it is
25 worn, then the second period will start immediately.

1 And I see your Honor looks a little confused,
2 and let me if I may provide a little more clarity.

3 Let's say the device is set up such that it will
4 check for motion to determine whether it's worn for a
5 period of one minute, and that one minute may repeat.
6 Let's say it's set for a one-minute time period to check
7 for motion to determine whether it's worn.

8 It may wait until the end of that one minute
9 time period, at which time it make the determination, hey,
10 all that motion we measured during the one minute, it looks
11 like it's being worn, we'll now go on.

12 Alternatively, during that one minute time
13 period you may be in the middle of that one minute time
14 period and there's enough motion where the ring says hey, I
15 think I'm being worn, in which case the second period of
16 time may start then. And that's the shortly before.

17 PRESIDING JUDGE: Okay.

18 MR. PENSABENEE: Did I answer your Honor's
19 questions?

20 PRESIDING JUDGE: Yes, you did.

21 MR. PENSABENEE: Oura raised basically --

22 PRESIDING JUDGE: Actually, can you go back to
23 the claim language again?

24 MR. PENSABENEE: Sure.

25 PRESIDING JUDGE: So if I understand what I

1 think you just said, the shortly before a first period of
2 time, in your view, can mean shortly before the first
3 period of time ends.

4 MR. PENSABENEE: Correct.

5 PRESIDING JUDGE: Okay. And then immediately
6 after would be after.

7 MR. PENSABENEE: Correct. And let me explain
8 that a little more, if I may.

9 Immediately after I think has a plain and
10 ordinary meaning. I think counsel essentially conceded
11 that, but I think we all are in agreement, it basically
12 means there's no intervening steps. There's going to be
13 some minute passage of time for processing and going to the
14 next computer instruction. But as a practical matter, I
15 think we all understand what immediately after means.

16 The shortly before is going to be before the
17 first period ends. So if the second period of time starts
18 before the first period even starts, that would not qualify
19 as shortly before.

20 So in other words, the boundary -- so before
21 means before the end of the first period, and the shortly
22 before means it has to be before the end of the first
23 period ends but after it has started.

24 So there's a definite defined window, objective
25 boundary, to determine what is meant by shortly before.

1 PRESIDING JUDGE: Okay.

2 MR. PENSABENEE: And you're kind of jumping
3 ahead to my punchline, but I'll walk through the argument.

4 The first argument that Oura raises relates to
5 the periods not themselves being defined, and I think I
6 started off by stating our view on that, but I'll go
7 through the support now.

8 So in our view, in Samsung's view, these periods
9 of time are actually defined or made clear in the claims
10 themselves. With regard to the first period of time, the
11 claim talks about determining whether the device is worn
12 using the first sensor. Again, the motion sensor. And it
13 calls this the first period of time.

14 So the bounds are set forth in the claim itself,
15 and this is echoed in the specification. The specification
16 talks about determining whether the electronic device is
17 worn using the first sensor, again motion, and that this is
18 the first period of time.

19 The specification also describes the operation
20 during this first period of time and talks about, for
21 example, and this is an example, when motion is detected,
22 the device might determine that it is being worn. And when
23 motion of the electronic device is not detected, it may
24 determine the device is not being worn.

25 Again, just to be clear, we're not suggesting

1 that motion is the only input into this wearer detection
2 functionality, but it is a key one for sure.

3 PRESIDING JUDGE: Is it a necessary one? I
4 mean, there can be others but motion --

5 MR. PENSABENEE: To meet the claim, yes, motion
6 must be a factor, it's required by the claim. But it's a
7 comprising claim not limited to just looking at the motion.

8 And again, the spec confirms these boundaries.

9 The specification also describes how it
10 operates. You know, if motion is detected, and I think I
11 went through this already.

12 The second period of time is likewise described
13 right in the claim itself, and it talks about during a
14 second period of time, determining if there is motion,
15 activating the second biometric sensor based on that mowing
16 at least in part, acquiring more information on motion, and
17 then inactivating or deactivating the sensor based on that
18 motion.

19 So again, the claim sets forth exactly what
20 happens during the second period of time.

21 This again is confirm by the specification. For
22 example, it describes the activation part as, you know,
23 acquiring information on motion during the second period of
24 time and activating the sensor, the biometric sensor, in
25 part based on that information.

1 It also describes the operation to the extent
2 that there need to be an explanation on how this is done,
3 and it operates the biometric sensor when the measured
4 motion satisfies select conditions.

5 In other words, the device will have a
6 particular threshold of the amount of motion that's
7 necessary to trigger activation of the biometric sensor or
8 below which it's necessary to activate the biometric
9 sensor.

10 But either way you're comparing the motion to a
11 reference or specified value.

12 Now, Oura seems to suggest or at least raise an
13 indefiniteness question because, in its view, these periods
14 of time are not fixed, they're not specified, they're not
15 set in stone. And the problem with this is actually a
16 consistent problem with Oura's arguments throughout claim
17 construction, and that is they tend to focus on particular
18 embodiments and don't look at the patent as a whole.

19 I think it's important to when you look at this
20 patent to appreciate that there are a number of different
21 embodiments described, and within those different
22 embodiments, there are many variants or variations or
23 alternative ways in which you can do these things.

24 So, for example, the specification here makes it
25 very clear that the period of time, for example 524, the

1 second period of time, can change during operation.

2 And again, the specification calls it the second
3 period of time, second timer. That's not my
4 characterization. That's what the specification calls it.

5 The specification actually goes on, and to the
6 extent there's any doubt, the specification explicitly says
7 that any of these three periods, the first period, second
8 period or third period, can change during operation, and I
9 didn't highlight it, but at the end there, based on the
10 acquired data.

11 So in other words, as you're operating the ring
12 or the wearable device, you can change the period of time
13 based on data you're getting.

14 So to give your Honor a more concrete example,
15 let's say during the wearer detection phase, first period,
16 the ring says oh, wait, there's a little bit of motion,
17 maybe I want to extend the first period to determine
18 whether or not there's wearing. That is fully contemplated
19 by the specification. It doesn't need to be fixed to a set
20 period of time ahead of time.

21 To determine infringement, this doesn't
22 introduce an indefiniteness problem, because the period of
23 time during which the sensor is sensing motion for purposes
24 of wear detection is determinable, it's an objective
25 boundary.

1 Oura goes on in their brief saying that's
2 subjective, but I just don't understand how that's
3 subjective at all. I think your Honor correctly
4 characterized it as being a functional definition of the
5 period as opposed to a subjective one. And there's nothing
6 that precludes a functional definition from providing the
7 objective boundaries required by the law.

8 PRESIDING JUDGE: Could I ask you a question
9 about the second period of time?

10 MR. PENSABENEE: Sure.

11 PRESIDING JUDGE: So just to frame the question,
12 the first period of time says using motion in part to
13 determine whether the device is being worn, period of time
14 when motion is sensed, the first period of time when motion
15 is sensed.

16 MR. PENSABENEE: To determine wear, correct.

17 PRESIDING JUDGE: To determine wear.

18 MR. PENSABENEE: It's the purpose of the motion
19 sensing that's critical.

20 PRESIDING JUDGE: Okay. So the second period of
21 time I think you said was using motion to determine whether
22 to activate the second sensor.

23 MR. PENSABENEE: To activate or deactivate the
24 second sensor, and the second sensor being the biometric
25 sensor.

1 PRESIDING JUDGE: Okay. My question was whether
2 it included deactivation and you clarified that. Thank
3 you.

4 MR. PENSABENEE: So getting back to Oura's
5 complaints about the claim and the first period of time and
6 second period of time lacking objective boundaries, I'll
7 call your attention, your Honor might want to make a note
8 of this slide 20 because this sets out to the extent that
9 it needs to be, that these time periods need a definition,
10 and we think it's clear from the spec we don't need it from
11 the from the claims.

12 But to the extent we need to set forth a written
13 definition of what these periods are, Samsung offers
14 definitions in slide 20, which come from our responsive
15 claim construction brief.

16 PRESIDING JUDGE: All right.

17 MR. PENSABENEE: And I think this is exactly
18 what your Honor was just asking about two seconds ago.

19 So the other complaint Oura raises is that
20 shortly before or immediately after are first comparing two
21 periods that themselves are undefined and then introduce
22 some other subjective comparison that can't be done.

23 I've already talked about the period being
24 defined so I won't address that again, and I'll instead
25 talk about the temporal comparison part of the shortly

1 before or immediately after.

2 So Samsung's construction proposes a specific
3 meaning as to each of these two different temporal
4 relationships. Shortly before would be, as I said earlier,
5 before the first period of time has ended when it's
6 determined that the electronic device is worn.

7 And I think, and maybe it should have been
8 included in there, it would be after the first period
9 starts. So after the first period starts but before the
10 first period has ended when it's determined that the
11 electronic device is worn.

12 And then immediately after, again, we don't
13 think that there's much confusion about what that means,
14 immediately after is immediately after the first time
15 period has ended when it's determined that the electronic
16 device is worn. And that's Samsung's construction.

17 We see honestly it's rooted right in the claim
18 language itself, which describes this, you know, Oura has
19 raised a question about what shortly before means, and I
20 think our construction based on the intrinsic evidence
21 answers that question.

22 The specification likewise echoes the claim
23 language and talks about the second period of time being
24 shortly before or immediately after the first period and
25 talks about that in either case, it's when the time the

1 electronic device is worn, it's been detected that it's
2 being worn.

3 Now, there's been a lot of discussion about
4 figure 5B, and again, I'll just go back to what I said
5 earlier. I think Oura overly focuses on one particular
6 embodiment or a particular description of an embodiment and
7 oftentimes ignores alternative embodiments or variants of
8 that.

9 And I think that comes into play here. But in
10 either case, the important thing here for figure 5B is this
11 shows the temporal relationship that is indicated by
12 immediately after.

13 We see that period 522 ends, and highlighted in
14 green, the operation of first timer ends at 520. And that
15 is the time when it's determining motion and that ends and
16 that's the first period.

17 Then the second period 524 is still measuring
18 motion during 524, but for a different purpose, and that is
19 to determine whether or not to operate the biometric
20 sensor.

21 And again, I don't think there's any real
22 confusion about what immediately after means, and I think
23 Counsel essentially conceded that, that there's not as much
24 ambiguity there.

25 Now, 5B they raise an issue that the first

1 period of time doesn't include activating the second sensor
2 based on motion. But it's simply not true.

3 The specification again a little later on talks
4 about the second period of time and activating the sensor
5 based on motion. This is just further down the description
6 in the language that they have clued in on where it talks
7 about this.

8 It also in this passage talks about determining
9 whether the device is worn during the first period of time,
10 522. Oura focuses on the initial description of figure 5B
11 but ignores the later description which makes clear that in
12 the first period of time 522 we're determining whether it's
13 worn, and in 524 we're determining whether or not to
14 activate the sensor.

15 And this is in Exhibit 1 the patent at column
16 20, lines 64 through column 21, line 8. Again, this is
17 just a variant or a description of what can be done as I
18 will strayed in 5B. This is something that Oura just kind
19 of ignores.

20 Now, the shortly before I will concede is not
21 illustrated in any figures, but here, and this is why I
22 earlier mentioned that the expert declaration of Dr. Young
23 is helpful, was he interprets the specification and
24 provides an illustration of what that means exactly.

25 And so what Dr. Young did is he looked at the

1 specification, this is at column 42:18 to 23. It also
2 appears similar language at column 21:52 to 57.

3 And it describes that the second period of time
4 may include the time period when the first period of time
5 passes. In other words, the end of the first period.

6 It says this multiple times. So the
7 specification clearly describes a circumstance of overlap
8 where the second period includes the ending period -- the
9 ending time of the first period.

10 I don't think, at least I didn't hear, Oura
11 seriously dispute that this language describes overlap. I
12 don't think there's dispute that this describes overlap of
13 the two periods.

14 And Dr. Young illustrated that Exhibit 6 to the
15 opening brief in paragraph 34.

16 As you can see, he's shown the first period of
17 time, which normally would have gone to and does go to the
18 end of the first period, but because wear is detected in
19 the middle of that period or towards the end of that
20 period, the second period begins and the device starts
21 looking at motion to determine whether or not to activate
22 the biometric sensor.

23 Again, just to reiterate, your Honor, to the
24 extent there needs to be meaning or desired meaning on
25 shortly before, the second period of time has to start

1 after the first period of time started. So as long as
2 you're in this zone, you are still shortly before the first
3 time period.

4 Does that make sense, your Honor?

5 PRESIDING JUDGE: Yes, I understand what you're
6 saying.

7 MR. PENSABENEE: Okay. And to provide further
8 guidance on this, the specification does provide some
9 examples which are helpful, and I think it describes the
10 first period -- in practice, you're not going to have the
11 second period start over here. What you're going to have
12 is the second period will start closer to the end, and the
13 specification gives example. For example, where the first
14 period is a minute, second period might start 10 seconds
15 before or something.

16 There are some suggestions. But again, it's not
17 limit to those.

18 Now, Oura seems to take the position that
19 there's no overlap permitted, but again, as he said, this
20 language from the spec clearly describes overlap, clearly
21 describes the second period of time encompassing the period
22 or the time when the first period ends. There's no
23 question about that.

24 So what Oura does instead is Oura takes issue
25 with the exact claim language. They say well, this

1 language in the spec, which again we all agree describes
2 overlap, it says it may include the time point when the
3 first time period passes. And Oura takes issue with our
4 argument because they say well, if that describes overlap,
5 that's not in the claim. That's not what the claim says,
6 so this is not relevant.

7 What I want to ask your Honor to do is to look
8 at claim 1 and claim 7. These claims are not asserted, but
9 they are extremely informative. And the reason is claim 1,
10 which is the independent claim, has the exact same language
11 we're now looking at. The exact same language we're
12 looking to construe, second period of time shortly before
13 or immediately after. Same exact language as in claim 13.

14 Dependent claim 7, which depends on claim 1,
15 then says "the second period of time comprises a time point
16 when the first period of time passes."

17 So in other words, claim 7 explicitly says
18 overlap, using the same exact language from the spec, and
19 because claim 7 depends on claim 1, the overlap of claim 7
20 has to be subsumed within the broader claim 1.

21 So the claim language itself definitively shows
22 that the language of claim 1 includes overlap. And because
23 the claim language from claim 1 is identical to claim 13,
24 the law is crystal-clear that those limitations must be
25 given the same meaning.

1 Now, Oura also tries to take select testimony
2 from Dr. Young out of context and somehow twist it into
3 some sort of admission that the patent and the claims don't
4 allow overlap. And that's simply not true.

5 If you look at Dr. Young's statements as quoted
6 by Oura, they're not inconsistent at all with Samsung's
7 position. And in fact, Dr. Young in paragraph 34 of his
8 declaration explains exactly what is meant by the claim and
9 the fact that it can encompass overlap, that the shortly
10 before encompasses overlap.

11 This is Dr. Young's testimony and Dr. Young's
12 illustration.

13 Now, as of figure 5B with figure 6, Oura is
14 making a big deal that oh, figure 6 has nothing to do with
15 the claim, has nothing to do with activating the second
16 sensor in response to motion. Rather, in claim -- in
17 figure 6, it determines whether the device is worn and then
18 necessarily absolutely activates the biological or
19 biometric sensor.

20 And again, this is because Oura is focused
21 myopically on just the description of the first embodiment
22 of figure 6. They do not look at or consider the variants
23 relating to figure 6.

24 So even when we look at the language of the spec
25 describing figure 6, it talks about in 603, identifying

1 whether it's worn, and then determines if it's worn, it
2 goes on. If it's not worn, it goes back and checks again.

3 It then says if it is worn, the electronic
4 device may operate the at least one second sensor. Doesn't
5 say it necessarily operates the second sensor. It says it
6 may. That's step 605.

7 If we look just a little later in the
8 specification, so we're talking about here column 23:53 to
9 59, we just look a few lines later, column 24:13 to 17, the
10 specification makes clear that in connection with operating
11 the second sensor 605, the system may identify motion of
12 the electronic device and may operate the second sensor
13 when the motion satisfies a conditions.

14 So in other words, while figure 6 as drawn does
15 not include motion as part of the operation of the second
16 sensor, the specification description just a few lines
17 later makes clear that that can be done, that is
18 contemplated by the invention, and that's exactly what
19 claim 13 does.

20 So again, we think that the purpose for which
21 the motion is being used, whether it's being used to detect
22 wear or being used to activate or deactivate the biological
23 sensor, along with whether wear is detected, are providing
24 objective bounds for these first and second time periods.
25 And that's all that's required.

1 There's no requirement of an actual numeric
2 number. It can be functional, as your Honor correctly
3 noted.

4 PRESIDING JUDGE: So is it true that you say use
5 motion to detect wear, use motion to detect whether to
6 activate or deactivate.

7 Can those be different? Like can you determine
8 wear but then not determine to activate?

9 MR. PENSABENEE: Yes. Yes, absolutely.

10 So, for example, you may have some motion, okay,
11 so the ring says oh, wait, there's motion, maybe it's being
12 worn and it makes the determination that it's being worn.

13 But the motion can be so aggressive that
14 accurate biometric information can't be determined and for
15 that reason, the ring will not activate the biometric
16 sensor. It will wait for the level of motion to go below a
17 threshold.

18 For example, when the person is sleeping.

19 PRESIDING JUDGE: Okay. So --

20 MR. PENSABENEE: It's a little counterintuitive
21 to what we often see in these cases. But we're actually
22 looking for motion being below a threshold to activate the
23 second sensor. And if it goes above that threshold or a
24 threshold, it will deactivate the sensor.

25 PRESIDING JUDGE: So you said the motion may be

1 so aggressive. Can you give me an example?

2 MR. PENSABENEE: Well, honestly, I think in
3 practice what happens is the device is generally trying to
4 make these measurements when you're sleeping. So it could
5 just be you're walking around your house or maybe you're
6 jogging or doing anything.

7 In those cases, generally the motion might be
8 enough that it cannot make an accurate biometric
9 measurement and so the ring says hey, if it's moving too
10 much, we're not going to make the measurements.

11 Generally in operation, and again we're not
12 defining this with regard to accused products or anything,
13 but it's generally for example if you're sleeping when
14 you're not moving a lot that it can take an accurate
15 measurement.

16 PRESIDING JUDGE: Okay. So in that situation,
17 there can be a determination that it's being worn, and then
18 in conjunction with that, a determination that these are
19 the right circumstances in which it will take biometric
20 measurement?

21 MR. PENSABENEE: Yes.

22 PRESIDING JUDGE: Okay. All right. Thank you.

23 MR. PENSABENEE: I also want to talk a bit about
24 Oura's repeated reference to the infringement contentions.

25 In the briefing that they went on and on at

1 great length about the infringement contentions and how
2 supposedly the infringement contentions are inconsistent
3 with our expert or inconsistent with our positions now on
4 claim construction.

5 And I think your Honor correctly noted a couple
6 times where they're really not consistent, okay. They're
7 not at all consistent.

8 But putting that aside, the claim construction
9 doesn't involve the accused devices. Claim construction is
10 based on the intrinsic evidence and in some cases may be
11 informed by expert testimony for example.

12 The law is very clear on that. You don't look
13 at the accused devices or infringement contentions to
14 determine whether or not -- how to construe a claim.

15 PRESIDING JUDGE: Well, but you can look at how
16 you're characterizing the claim, which would indicate how
17 you're construing the claim for purposes of asserting
18 infringement or validity. So I don't know that it's
19 forbidden.

20 MR. PENSABENEE: Well, that's a fair point, your
21 Honor, and I'll accept that.

22 But I think that it's important to note Samsung
23 was not in its infringement contentions attempting to
24 define the terms at all. And if I can give your Honor a
25 real world example, I think it illustrates the point I'm

1 trying to make.

2 Let's say the patent relates to a kitchen having
3 a frying pan, okay, and a frying pan is the term we're
4 trying to construe. Let's say Samsung in its infringement
5 contentions looks at Oura's kitchen and says hey, look, at
6 your stove you have a container and that's the frying pan.

7 That's what's happening here. Samsung is not
8 saying oh, a frying pan is defined as anything on a stove.
9 Samsung is just identifying where that frying pan is. And
10 that's what we have here.

11 PRESIDING JUDGE: All right. No, I understand.

12 MR. PENSABENEE: Again getting to Oura's second
13 criticism of shortly before and immediately after being
14 undefined or undefinable, I think I've fully addressed
15 that. And I would offer your Honor Samsung's construction
16 of the term, which I think makes this clear.

17 As I said before, if we need to also define the
18 first period of time and second period of time, I've set
19 forth what Samsung offers for those particular terms. I
20 think it's on slide 20.

21 PRESIDING JUDGE: All right. And I assume --
22 well, would it be better to define those? I mean, that's
23 not the dispute the parties have brought forward.

24 MR. PENSABENEE: Yeah, honestly, your Honor, we
25 didn't think it was necessary. But to the extent your

1 Honor thinks it would be helpful, again we don't object to
2 the definitions as we've described them and set them forth
3 on I think it's slide 20.

4 PRESIDING JUDGE: All right.

5 MR. PENSABENEE: The third period of time, again
6 and I think here we're a little more fulsome in our
7 construction, and included in there with the third period
8 of time is in particular again it's a time period used to
9 determine when to activate the at least one second sensor.

10 And I think -- I described this briefly at the
11 outset of the argument. You know, going back to claim 13
12 right in the middle there, it ends with the inactivation or
13 deactivation of the biometric sensor.

14 Claim 15 picks up from there and says for a
15 third period of time, and that third period of time is
16 immediately after the second period, and it's shorter than
17 the first period, it's going to look at additional motion
18 information and reactivate, I should say, the second sensor
19 based on that motion.

20 So it just follows again immediately after the
21 second period, after the second sensor is deactivated,
22 second period ends, third period begins, if it's looking
23 for motion to determine whether to reactivate the sensor.

24 Again, this is consistent with the
25 specification, which describes the same thing. It

1 describes the third period of time as being immediately
2 after the second period and being shorter than the first
3 period, and it talks about again using motion during this
4 third period of time to determine whether to reactivate the
5 sensor.

6 I think there's been some question raised about
7 the shorter than the first period, and Oura claims you
8 can't determine whether it's shorter than the first period
9 unless you know the first period.

10 But these are method claims. So if in the
11 operation of the ring it is making that use of motion to
12 determine wear for the first period and that first period
13 ends because wear is detected, for example, you know that
14 period of time. The period of time the ring was performing
15 that function is the first period of time.

16 Then the third period of time will be the time
17 when this ring is looking for motion again, this time to
18 reactivate the sensor.

19 Again, I think your Honor hit the nail right on
20 the head when your Honor pointed out that these are
21 functional boundaries. What is the second -- what is the
22 sensor being used for, motion sensor being used for.

23 PRESIDING JUDGE: So here you are proposing
24 construction for third period of time at the end used to
25 determine whether to activate the at least one second

1 sensor. You were talking about it and I think you said it
2 was whether to reactivate it.

3 Does that difference matter?

4 MR. PENSABENEE: I'll be honest with you, if
5 your Honor would prefer to say reactivate to make the
6 construction a little clearer, we would have no objection
7 to that.

8 It's implicit because claim 13 on which claim 15
9 depends ends with the sensor being deactivated. So whether
10 you characterize this as being activated or reactivated is
11 immaterial, it's not going to make a difference for any of
12 the arguments or infringement reads.

13 Unless your Honor has any questions, I have
14 nothing further.

15 PRESIDING JUDGE: All right. I don't.

16 MR. PENSABENEE: Thank you.

17 MR. NOLAN: Your Honor, may I have a short
18 response?

19 PRESIDING JUDGE: Yes, please. And if -- before
20 you move slides, can you go to slide 20, please?

21 MR. PENSABENEE: I'm sorry, slide 20?

22 PRESIDING JUDGE: Yes. Before we switch slides,
23 I would like to ask you a question about slide 20 in Oura's
24 slides.

25 So Oura identifies that its definitions of first

1 period of time, second period of time, I want to start with
2 those.

3 Do you disagree with those? And if so, why?

4 MR. NOLAN: Yeah, I don't think that those are
5 our periods of time, your Honor. I think those are
6 Complainants' periods of time. That's what Complainant is
7 saying.

8 This says this is Oura's argument on slide 20.

9 PRESIDING JUDGE: Yes, yes. And I want you to
10 tell me why you disagree with those definitions of first
11 period of time and second period of time.

12 MR. NOLAN: So well, because I think that as you
13 read the claim, the claim is not clear that that's what is
14 being referred to as the first period of time and second
15 period of time.

16 PRESIDING JUDGE: Okay.

17 MR. NOLAN: Then when you look at their
18 position, what they then went to, and they introduced
19 figure 5B as the support for this, because when they talked
20 about figure 5B, we're just trying to say okay, what's the
21 first period of time that you're using motion, what's the
22 second period.

23 They're saying first period of time is using
24 motion to detect whether it's being worn. I don't know
25 necessarily that that flows from the claim language. And

1 then when they went to 5B and they said look, this is shown
2 in figure -- in time period 522, we looked at 522 and
3 that's not what's being detected, that's not what is
4 happening.

5 Because the biometric sensor is already on at
6 that point. And then at the end of timer 1 when the
7 biometric sensor is already on, that it then has to -- it's
8 measuring motion to determine to do something else with
9 respect to the biometric sensor.

10 So this first period of time during which the
11 motion is measured by a first sensor is used to determine
12 whether the electronic device is worn, there's nothing in,
13 at least we see, in the specification that aligns with
14 whatever that is.

15 And if you look at it the claim says you
16 determine that the device is being worn for some reason,
17 they don't necessarily align up with the first period of
18 time.

19 Your Honor, if I may just ask my colleague to
20 bring up slide 22 from Samsung's presentation.

21 So I'd like to focus on this shortly before and
22 the overlap period. And I appreciate that Complainant is
23 asking the word "shortly" to do quite a bit here. Because
24 what I think I heard him say during his presentation is he
25 modified what's under (i) here, he said what it should say

1 is because it uses the term "shortly," it should say after
2 the first period of time starts but before it ends, that
3 all comes from shortly.

4 And that seems, first of all, to be inconsistent
5 with what the term "shortly" means, but it also seems that
6 shortly is doing a whole lot of work here to change the
7 meaning of this claim.

8 So I don't know why shortly somehow means that
9 this has to dictate overlap.

10 Again, I didn't appreciate that in their papers,
11 I don't think it's in their papers because Counsel made a
12 point of changing that here. But it just is not consistent
13 with what the term "shortly" before means.

14 Counsel also took issue with our use focused on
15 the specifications disclosure and use of the word "time
16 passes."

17 So again, I take you to 28, slide 28 of
18 Samsung's, and this is the rewriting the specification by
19 their expert to say well, this is what really 5B means.

20 But I would point you that this language says
21 again, includes a point when the first period of time
22 passes.

23 All we're doing is asking you to construe the
24 terms in the claim. If there's a term in the spec that
25 differs from the claim, that matters.

1 Now, I'd like to then take you to slide 30,
2 where they try to say well, let's focus on different
3 claims. And I believe -- I don't think he used the terms
4 "claim differentiation," but I think that's his argument.

5 As this court well knows, claim differentiation
6 is not a hard and fast rule. Because claim 7 uses the time
7 when the time passes. So clearly claim 7 is about doing
8 this after the first period is over.

9 And they're saying well, because that's about
10 the first period being over, you have to construe claim 1
11 to be broader and thus, even though it doesn't say it, it
12 means that it includes overlap.

13 Again, claim differentiation is not a hard and
14 fast rule. We all know what passes means. They wrote this
15 as shortly before, immediately after. And no one has
16 briefed what claim 1 means, no one has briefed what claim 7
17 means. And I think if you review any of their papers, this
18 argument is wholly new. It's not in their papers.

19 They put it in their slides. I think they put
20 it in their slides because they realized they have a
21 problem with the "shortly before" language. And I don't
22 know that we want to have to go through the process of
23 briefing claims 1 and claim 7 as to what they mean and what
24 a claim differentiation somehow here dictates that this
25 encompasses an overlap.

1 Shortly before the first period of time simply
2 means that, shortly before the first period of time.

3 And there's a difference between shortly before
4 the first period of time passes. There's a difference.
5 That pass means a significant amount.

6 And then finally, I would just point to when
7 they talked about figure 5B and somehow that we are relying
8 heavily on 5B, they walked through 5B because you can see
9 in their papers it's all through their opening paper and
10 their other paper. And we just wanted your Honor to
11 explain what it meant.

12 We heard Counsel talk about there's a whole host
13 of other embodiments and how we're focused on 5B.

14 Well, 5B is the example they went through. 5B
15 is what they talked about.

16 I would note if you go to slide 18, just so you
17 note when you read this specification, when they get to
18 this, you know, section 22, 5B, when it gets to extrinsic
19 evidence, that's not talking about extrinsic anymore,
20 that's different.

21 Same thing when you look at slide 27. When you
22 look at slide 27, again this 20:64 to 21:80, again I don't
23 think it's talking about figure 5 again.

24 I appreciate the difficult task they have. They
25 are trying to resurrect claim language that was poorly

1 drafted, and it's unfortunate for Samsung that it was
2 poorly drafted because that poor drafting leads a lack of
3 reasonable certainty which leads to one conclusion, that it
4 should be held indefinite.

5 But trying to cobble together a whole bunch of
6 different embodiments in the specification to resurrect the
7 claim limitation is just not proper in this instance. It's
8 just not supported to provide a definition.

9 So unless your Honor has any other questions, I
10 think that I'm complete with my response. I'm sure you're
11 happy to hear that.

12 PRESIDING JUDGE: Thank you. I appreciate it.
13 Thank you.

14 MR. NOLAN: Thank you for your time today, your
15 Honor.

16 PRESIDING JUDGE: I don't have any questions.
17 Thank you.

18 MR. PENSABENEE: Thank you, your Honor. I'll be
19 very brief. I just want to correct something.

20 One of my colleagues called to my attention I
21 may have misspoke earlier. I just want to be clear. It's
22 Samsung's position that our infringement contentions,
23 Dr. Young's testimony and our claim construction positions
24 are all consistent, not inconsistent. I don't know if I
25 misspoke, but I just wanted to make sure that was clear.

1 PRESIDING JUDGE: I'm sure you --

2 MR. PENSABENEE: I assumed your Honor understood
3 what I was trying to say even though I misspoke, but I just
4 want to not be misunderstood.

5 PRESIDING JUDGE: All right.

6 MR. PENSABENEE: And again, this argument about
7 the claim language in 1 and 7, this responds to something
8 in Oura's responsive brief. They made a big deal of the
9 fact that this particular language was not in the claims.
10 But I heard nothing to refute that this language -- what
11 they don't dispute covers overlap, this describes overlap,
12 they don't dispute, they can't dispute, that this is
13 encompassed within the exact language we're now construing.

14 It may be in a different claim, it may be in
15 claim 1, but it's the same exact language and it has to be
16 given the same exact meaning.

17 And I think just one last remark unless your
18 Honor has any questions. You know, again what we've heard
19 from Oura again is asking this court to ignore the clear
20 descriptions of variance within the specification.

21 Whether or not those variants explicitly talk
22 about figure 5B, for example, it is -- there's a discussion
23 of figure 5B, there's discussion of variance. Then it
24 talks about figure 6. It talks about variants.

25 The fact that it also doesn't say hey, in 5B,

1 this is what it is, it doesn't change what the spec says as
2 a whole. And it's completely improper to ignore what the
3 spec says as a whole, because we're supposed to look at the
4 claims, determine indefiniteness based on the
5 specification.

6 PRESIDING JUDGE: All right. Thank you. Why
7 don't we take a 15-minute break and then we will resume.

8 (Recess.)

9 PRESIDING JUDGE: I think we can move on to the
10 next term.

11 MR. PENSABENE: Your Honor, Mark Pensabene again
12 for the Complainants. I don't have a fancy hot seat guy,
13 so I apologize, I've got to do a little bit of computer
14 work myself.

15 PRESIDING JUDGE: That's fine.

16 MR. PENSABENE: The last dispute relates to the
17 claim term the biometric signal as appears in claim 14 of
18 the '359 patent.

19 Importantly, the parties agree that there's an
20 obvious typographical error and it needs to be corrected.
21 The parties differ only in terms of what that correction
22 should be.

23 Samsung proposes a correction that's firmly
24 based on and rooted in the intrinsic evidence, whereas
25 Oura's proposed correction seeks to introduce a concept not

1 found anywhere in the patent, this idea of identifying an
2 individual based on physical characteristics. Nowhere in
3 the patent.

4 As I said, the intrinsic evidence firmly
5 supports Samsung's position, and it's supported by not only
6 claim 14 itself where the term appears, but it also is
7 supported by other claims, as well as the specification.

8 So starting with claim 14 itself, we see it's a
9 very logical progression. The claim first recites a
10 biological sensor. It then talks about a biological signal
11 being obtained from the biological sensor, and it then
12 talks about, and here's where the error is, validating a
13 signal. That's where the typo is or the misstatement is.

14 And it's clear, Samsung submits, that really
15 what was intended here was biological signal consistent
16 with the rest of the claim.

17 We can see this most clearly when we compare
18 claim 14 to other claims in the patent, for example claim
19 7, which follow a similar structure, but when it gets to
20 the last part of the claim, using the signal or validating
21 that signal, it recites the biological signal.

22 Again claim 7 has the biological sensor
23 obtaining the biological signal from the biological sensor
24 and then doing something with that biological signal.

25 Clearly we see in other claims the patentee did

1 not make the same mistake, correctly wrote biological
2 signal instead of the very similar biometric signal, and we
3 propose that claim 14 should be corrected accordingly.

4 It's also informative when you look at the claim
5 as a whole, claim 14, there are two signals recited in this
6 claim. There's the biological signal which I already
7 talked about, and then there's another signal, the movement
8 signal. And the way the claim is structured is that the
9 movement signal is used to determine a specified condition,
10 and that specified condition is used to validate the
11 biometric signal.

12 Again, the biometric signal should be the
13 biological signal because it would make no sense for the
14 movement signal to be used to validate itself. Clearly has
15 to be used to validate the biological signal.

16 To make this point more clear, we can map this
17 directly to the specification. And the specification,
18 figure 4, it talks about detecting motion and obtaining a
19 first signal. So the first signal in blue corresponds to
20 the movement signal in the claim.

21 It then talks about obtaining a second signal,
22 and described in the text that second signal is the
23 biological signal.

24 And it then determines this movement signal to
25 validate the second signal, the biological signal. Again,

1 that maps exactly with Samsung's reading of claim 14.

2 Now, beyond the correction of biometric to
3 biological, Samsung's plain and ordinary meaning for the
4 term is also firmly supported by the specification, because
5 the specification describes this second signal. Again
6 that's the signal here you just looked at in figure 4.
7 Describes the second signal as being a biosignal associated
8 with biological information, such as, for example, and it
9 gives a couple of examples of muscle contraction and muscle
10 relaxation.

11 So again, Samsung's plain and ordinary meaning
12 comes directly from the specification, it's a signal
13 associated with biological information.

14 Now, Oura cites the correct legal precedent,
15 legal authority, but it fails to apply it. So here -- and
16 this is from Oura's opening brief, Oura's brief at page 18.

17 They acknowledge that the Court "must consider
18 how a potential correction would impact the scope of a
19 claim and if the inventor is entitled to the resulting
20 claim scope, based on the written description of the
21 patent."

22 So in other words, the correction has to be
23 consistent with the written description.

24 Oura's construction, however, completely ignores
25 this legal precedent. They want to construe biometric

1 signal as a biometric signal, in other words a new concept
2 introduced in the claim, and indeed a new concept
3 introduced in the patent. And they want to construe this
4 biometric signal to be a signal relating to the
5 identification of an individual based on physical
6 characteristics, such as fingerprints, finger lengths,
7 facial features, retinal patterns, voice recognition, and
8 weight.

9 Now, this term "biometric" doesn't appear
10 anyplace else in the patent except for the mistake in claim
11 14, nowhere else.

12 Indeed, the broad concept of identifying
13 individuals based on physical characteristics is not
14 mentioned in the patent, nowhere in the patent. And
15 there's absolutely no description of using fingerprints,
16 finger lengths, facial features, retinal patterns, voice
17 recognition, or weight for any purpose. It's just not in
18 the patent at all.

19 Indeed, the patent doesn't even disclose sensors
20 or anything that could be used to make these
21 determinations. Now, here's where I'll have to ask your
22 Honor a little bit of indulgence as I perform my own hot
23 seat work.

24 This is what Oura cites as intrinsic support.
25 The only thing the patent says is identify certain devices

1 that can be used with the invention.

2 Among them, it identifies a mobile device, a
3 television, heating thermostat, a vehicle, et cetera. That
4 is the only description in the spec that Oura relies on.
5 There's no description of biometric information, no
6 description of identifying an individual based on physical
7 characteristics.

8 And indeed -- and I should say, this is slide 35
9 from Oura's presentation.

10 Turning to slide 32 from Oura's presentation, we
11 see what they try to do here. They try to use their expert
12 to fill in the gaps.

13 But importantly, they don't highlight a very
14 important statement. Their expert admits that biometric
15 information is not disclosed in the spec. She admits that.
16 And the inquiry should end there.

17 What Oura instead asks us to do, Oura says
18 because the invention can be used with a mobile device or
19 car, for example, there may be some instances, at least
20 some instances, when you may want to verify the identity of
21 the user, for example for a mobile phone, thermostat or
22 entry to vehicle.

23 They make this leap of faith, yeah, you could
24 use it with these things, and you may want to identify the
25 user for those things.

1 They then go to the further leap of faith that,
2 in identifying the user for using these devices, you might
3 want to use biometric information.

4 So Oura's entire argument is based on multiple
5 leaps of faith, two or three leaps of faith, based on the
6 fact that the specification discloses that the invention
7 can be used for example with a car.

8 But I don't know about your Honor, but I don't
9 know any cars, at least none that I'm aware of, that use
10 biometric information like the length of your finger or a
11 retinal scan to let you use the car.

12 Putting aside the inappropriateness of these
13 multiple leaps of faith, I don't think as a factual matter
14 it holds water.

15 And again, none of this meets the Section 112
16 requirement. The test for written description is not
17 something that would have been obvious from the disclosure,
18 or whether something would have been -- could be used with
19 the disclosure.

20 The test for written description is whether it's
21 adequately described in the specification. And looking at
22 slide 35, this does not describe what Oura is proposing as
23 the construction.

24 I apologize, jumping back to our presentation.

25 The only other intrinsic evidence Oura tries to

1 point to is the prosecution. And in particular what they
2 point to is an amendment to the at-issue claim when it was
3 pending, and they argue that, well, the applicant made
4 other corrections to the claim, other amendments, but the
5 applicant did not change the biometric signal to be
6 anything else.

7 And so Oura draws the conclusion based on that
8 that, oh, the applicant must have intended biometric
9 signal.

10 Putting aside that biometric natural is nowhere
11 else described in the patent, this is a far cry from
12 demonstrating any intent to introduce this completely new
13 concept. To the contrary, all this shows is that the
14 applicant missed the mistake, didn't catch the mistake,
15 when they were amending the claim.

16 Now, the only evidence I already mentioned that
17 Oura does rely on are the expert declaration of their
18 expert, Dr. Rosing, and select dictionary definitions. But
19 here the law is crystal-clear that a definition found in or
20 ascertained by reading the intrinsic evidence cannot be
21 contradicted by any meaning found in dictionaries or
22 technical treatises.

23 In other words, you can't overrule or override
24 what's clear from the specification by relying on extrinsic
25 evidence, and that's what Oura is seeking to do here.

1 Also, and what Oura is doing is changing the
2 word the to a, to make it a new concept in the claim. But
3 again, the court made clear in the Canatex case, you can't
4 do this if what you're doing is changing what is described
5 in the specification. And that's exactly what Oura is
6 doing.

7 They're introducing in the claim a new concept
8 of biometric information that they cannot point to anywhere
9 in the specification. There is nothing about identifying a
10 user based on physical characteristics anywhere even
11 alluded to in the spec.

12 Even if expert declarations could override the
13 intrinsic evidence, which we don't believe they should
14 given the clear law, Samsung offers contrary extrinsic
15 evidence.

16 For example, Dr. Young explains how the signal
17 as claimed is a signal associated with biological
18 information, and he also points to extrinsic evidence that
19 even if you keep biometric signal to be a biometric signal
20 as Oura proposes, there are other meanings to biometric
21 signal that are consistent with the specification.

22 For example, the other patents in this case, the
23 '675 patent, uses biometric information to describe things
24 like blood pressure, heart rate, et cetera, not to identify
25 a user.

1 So in short, the parties agree there should be a
2 correction, no dispute about that. And both parties are
3 citing extrinsic evidence to support their position.

4 The important, the critical, the determinative,
5 difference here, though, is that only Samsung identifies
6 intrinsic support that actually supports their
7 construction.

8 Oura identifies nothing that even mentions
9 biometric signals, identifying physical -- identifying
10 people from physical characteristics or anything like that.

11 I would challenge Oura to get up here today and
12 show this Court anywhere where the patent talks about
13 identifying an individual based on physical
14 characteristics, and they're not going to show you a single
15 sentence.

16 Now, I think in fairness, Oura recognizes the
17 weakness of their position, and in their responsive brief,
18 they kind of retreated. In retreating, what they're trying
19 to do is latching onto the language from the specification,
20 but trying to limit the definition to an example, example
21 embodiment.

22 They point to the same sentence Samsung does,
23 which talks about a biological signal associated with
24 biological information, but they only want to construe it
25 to mean the example. The muscle contraction and muscle

1 relaxation.

2 But the muscle contraction and relaxation,
3 that's not what the biological signal is. That is just an
4 example of a biological signal, and it's well-settled,
5 black letter law that it's improper to limit a claim to an
6 example embodiment, which is exactly what they're trying to
7 do in their backup fallback argument.

8 So again, Samsung submits that no dispute there
9 should be a correction. The correction should be made to
10 the biological signal consistent with the rest of the
11 claim, consistent with the other claims, consistent with
12 all the description in the specification, and adopting the
13 plain meaning of that term, as set forth in the
14 specification, to be a signal that's associated with
15 biological information of the user.

16 Unless your Honor has any questions, I have
17 nothing further.

18 PRESIDING JUDGE: I do not. Thank you very
19 much.

20 MR. PENSABENE: Thank you.

21 MR. NASH: Can we go to slide 28.

22 Good afternoon, your Honor, Brady Nash on behalf
23 of Respondents.

24 With respect to claim 14 in the '359 patent, the
25 dispute between the parties focuses on whether the term

1 "the biometric signal" should be corrected to be a
2 biometric signal or the biological signal.

3 The crux of this matter is whether the
4 correction offered by Complainants improperly rewrites and
5 broadens the scope of the claim by eliminating the required
6 biometric signal.

7 Can we turn to slide 29.

8 This slide illustrates here we can see that the
9 term the biometric signal lacks the required antecedent
10 basis. The correction offered by Respondents seeks to
11 maintain the integrity of the claim as written by
12 correcting the biometric signal to be a biometric signal,
13 and applying the plain and ordinary meaning of the term as
14 understood by a person of skill.

15 In Canatext, the case relied on by Complainants
16 in their briefing, the Federal Circuit explained that the
17 standard for judicial correction is a demanding one and
18 must be determined from the point of view of a person of
19 skill.

20 When determining whether to correct a claim,
21 courts are required to take account the public notice
22 function of the patents, and must determine whether a
23 person of skill is constructibly aware of the intended
24 meaning of the terms requiring correction.

25 As such, the terms that require correction are

1 being corrected based on the understanding of a person of
2 skill, and expert opinions and declarations are relevant to
3 that inquiry as we consider what a person of skill would
4 understand when reading the terms of the claim.

5 Now, as Complainants noted, there's no dispute
6 that an antecedent basis issue exists in the claims.
7 Rather, the dispute is whether Complainants have met the
8 very demanding standard for judicial correction of a claim
9 term, which they have not done.

10 Turning now to slide 30, we can see that the
11 '359 patent is directed to a wearable device that detects
12 intentional motions of a user to control an external
13 device.

14 For example, through an intentional muscle
15 contraction or muscle relaxation, a user can operate an
16 external device like a TV, a thermostat or vehicle door.
17 Figure 1 here illustrates an example of a wearable device
18 that utilizes a controller to determine whether a motion is
19 intentional or whether to transmit a command signal to the
20 external device.

21 Within this context, the '359 patent discloses
22 the obtaining of a movement signal and the obtaining of a
23 biological signal.

24 Turning now to slide 31. As you're well aware,
25 the claim construction begins and ends with the actual

1 words of the claim. The focus of the claim construction
2 inquiry is from the standpoint of a person of skill in the
3 art.

4 If skilled artisans understand the plain and
5 ordinary meaning of a term, no construction is required.
6 However, to the extent a term's plain and ordinary meaning
7 is in dispute, claim construction inquiry first begins with
8 the actual words of the claim, then considers the intrinsic
9 record, and finally turns to the extrinsic evidence as
10 needed.

11 In this case, the term "biometric signal" is
12 used in claim 14 but does not appear elsewhere in the '359
13 patent. Thus, considering extrinsic evidence is
14 appropriate to the extent the term's plain and ordinary
15 meaning is in dispute.

16 Turning now to slide 32, we can see that
17 Dr. Rosing, the expert that was retained on behalf of
18 Respondents, explains that a person of skill would
19 understand that a biometric signal is consistent with its
20 plain and ordinary meaning, that is it's a signal that
21 relates to the identification of an individual based on
22 physical characteristics, such as fingerprints, finger
23 lengths, facial features, retinal patterns, voice
24 recognition, and weight.

25 In support of this position, Dr. Rosing relied

1 on a variety of dictionary definitions related to the
2 meaning of the term "biometric." Complainants never
3 proposed -- Dr. Rosing -- her testimony is unrebutted, and
4 Complainants did not provide an alternative construction of
5 the term "biometric," so the construction offered by Oura
6 is undisputed.

7 Turning now to slide 33, we can see that
8 Dr. Young, the expert retained by Complainants, agrees with
9 Dr. Rosing's understanding of the term "biometric" when he
10 explained that a biometric signal is a signal related to
11 characteristics of biological information, like retinal,
12 voice recognition, finger lengths, things like that.

13 Here Dr. Young explained that biometric
14 information falls under the umbrella of biological
15 information, but is specifically related to information
16 related to the identification of an individual based on
17 specific characteristics.

18 It is well established that specification does
19 not need to include information that is already known by a
20 person of skill, and in this case it's established that
21 Dr. Rosing and Dr. Young both agree that biometric
22 information -- or that biometric information is focused on
23 characteristics specific to an individual.

24 Now, if we turn to slide 34, Complainants have
25 argued that Dr. Rosing relied on cherry-picked definitions

1 and extrinsic evidence. However, when asked about whether
2 to consider treatises or other dictionary definitions,
3 Dr. Young confirmed that he did not.

4 So based on this, Complainant has failed to
5 allege or even point to any extrinsic evidence that is
6 considered by courts in determining what the meaning of a
7 term is, and Dr. Young failed to consider this information
8 as well.

9 So based on the alignment of experts related to
10 the meaning of the term "biometric," the claim construction
11 inquiry can end with that term of a biometric -- or the
12 term "biometric" relates to the characteristic and
13 identification of an individual.

14 Now, let's turn now to slide 35. Kind of again
15 give a little bit more context here as to what's going on.

16 As explained earlier, the '359 patent relates to
17 the control of an external device. An external device, as
18 shown here on slide 35, may be a mobile device like a TV, a
19 DVD player, a radio, a thermostat or a vehicle door that is
20 controlled by a command signal generated by an intentional
21 movement.

22 In at least one example, the command signal may
23 be used to start a vehicle, or as an identification to make
24 a payment.

25 Here in the column 7, lines 26 to 29, the

1 specification uses an ID signal.

2 So we understand that there's some sort of
3 identification and need to determine who the user of this
4 wearable device is to control an external device.

5 Turning now to slide 36, we can see that
6 Dr. Rosing explained that a person of skill would
7 understand the need to use biometric information to verify
8 the identity of the user prior to allowing control and
9 operation of an external device.

10 So in the context of this patent, if you have a
11 vehicle door or entry to a vehicle that you'd like to gain
12 access to through a wearable device, it stands to reason
13 that understanding who the user is and having some sort of
14 identification and verification of the user would be
15 desirable, and used, and it's something that a person of
16 skill would understand when reading the term "biometric" in
17 terms of controlling external devices.

18 Now, turning now to slide 37, we see that
19 Dr. Young also agreed that one of the focuses of the '359
20 patent is to control external devices based on intentional
21 instructions from a user.

22 Within this context, it is clear that biometric
23 information may be used to identify a user before granting
24 control of an external device, and the control of the
25 external device is based on intentional movements and

1 intentional motions from a user.

2 Now, if we turn to slide 38, we can see that
3 Complainants' argument is that Oura has failed to consider
4 the intrinsic record. This argument however ignores that
5 claim 14 expressly recites a biometric signal.

6 And while the term "biometric" is not expressly
7 used in the specification, it is implicit and explicit in
8 the intrinsic evidence related to the control of external
9 devices.

10 Turning now to slide -- or if we look at
11 Complainants' slide 55, Complainant is now asserting that
12 it failed to notice the error during prosecution of the
13 '359 patent. However, there's no way to know the intent of
14 the patentee at this point in time, especially in light of
15 the decision not to amend the claim when they had the
16 opportunity.

17 So if we can go back to Respondents' slide 39.

18 Now, to the extent the Commission agrees that
19 the correction offered by Complainants is the correct -- is
20 the correct decision, which again Respondents disagree, we
21 believe that the term should be corrected to be a biometric
22 signal, correcting the antecedent basis issue, the
23 construction offered by Complainants improperly seeks to
24 broaden the scope of the claims.

25 Biological signal is not merely a signal

1 associated with biological information. Rather, it is a
2 signal that is specifically related to muscle contraction
3 or muscle relaxation.

4 Samsung relies heavily on the extrinsic record
5 to argue that the term "biometric" should be corrected to
6 be biological, but ignores the specification and the clear
7 teachings related to controlling an external device when
8 arguing for the adoption of its improperly broad
9 construction.

10 All examples in biological information collected
11 by a biosensor in specification relate to muscle
12 contraction and muscle relaxation.

13 Now, let's take a look at slide 61 of
14 Complainants' slide deck. Here Complainants are
15 highlighting that Dr. Young's testimony indicates that the
16 biological information is limited to examples related to
17 muscle contraction and muscle relaxation, which is exactly
18 the construction being offered by Respondents in this case.

19 But if we take a closer look now at the two
20 boxes under here, the first is Exhibit 6 at 18 and Exhibit
21 1, these documents are referring to the '675 patent, which
22 is unrelated to the '359 patent. In fact, it was published
23 after the '359 patent.

24 Here we see that the patentee in the '675 patent
25 is acting as their own lexicographer in defining biometric

1 information to include blood pressure, heart rate,
2 electrocardiogram, skin moisture, saturation of peripheral
3 oxygen, and the like.

4 This definition has absolutely nothing to do
5 with the actual meaning of the term "biometric" as
6 understood from treatises and understood from technical
7 dictionaries, and is again just an example of a patentee
8 acting as their own lexicographer.

9 And I think this really kind of gets to the
10 heart of the issue of Oura's -- or excuse me, Samsung's
11 attempt to broaden the scope of the claim to just include
12 biological information. They would like to be able to
13 claim that, you know, biological information is anything
14 under the sun related to biological information, but
15 ignores the fact that the 3 -- that the 375 patent is
16 specifically related to using intentional motions to
17 control an external device.

18 That includes the biological information, how
19 that biological information like muscle relaxation is being
20 used to generate a control signal.

21 Now, if we turn now to slide 40 of Respondents'
22 demonstratives, we can see that Dr. Rosing confirmed that
23 the specification describes the biological signal as a
24 signal related to muscle contraction or muscle relaxation
25 of body part such as a wrist or a heart.

1 And finally, in their briefing, Complainants
2 rely on a variety of cases to determine -- to argue that
3 their correction is the correct correction.

4 However, if we take a look at those cases, we
5 can see that in each instance, the court never adopted a
6 correction that expanded the scope of the claim. Rather,
7 they adopted corrections that narrowed the claim or
8 maintained the claim scope to be the same.

9 PRESIDING JUDGE: So I have a question on that.

10 In cases involving correction, do courts -- or
11 has it been said, the Federal Circuit said, that doing the
12 correction cannot broaden the scope?

13 MR. NASH: I can't think of a case off the top
14 of my head. But the cases that are cited and the cases
15 I've seen consistently apply the standard where they're not
16 broadening the scope of the claims. Each instance it
17 either maintains the scope of the claims or narrows the
18 scope of the claims.

19 PRESIDING JUDGE: Is the scope of the claim a
20 factor in determining whether or how a correction can be
21 made?

22 MR. NASH: I think it's relevant to it. Because
23 again, as stated earlier, the purpose of a claim is to put
24 the public on notice of what is protected and what is being
25 claimed. And if we're broadening the scope of the claim,

1 that's now changing and altering that notice standard of
2 how a person reading the patent would actually understand
3 what it is.

4 PRESIDING JUDGE: Okay. Another question I have
5 is going back to what I think is step 1 here, whether and
6 how a correction can be made.

7 Is it appropriate to consider the prosecution
8 history in determining whether a correction can be made?

9 MR. NASH: I think the prosecution history is
10 certainly relevant to that inquiry. I think -- again, I
11 think here we're meaning to consider all types of evidence,
12 including the specification, including the prosecution
13 history.

14 And in this case where the term "biometric" is
15 not expressly used in the specification, I think
16 understanding what that term means to a person of skill is
17 also relevant to understanding how the correction should be
18 implemented.

19 PRESIDING JUDGE: Okay.

20 MR. NASH: But again, if the Court has no
21 further questions, I think I can end there. So thank you.

22 PRESIDING JUDGE: Okay. Thank you.

23 Actually, before you go, I have another
24 question.

25 In the '359 patent, counsel for Samsung pointed

1 to claim 1, and put side by side claim 1 with claim 14, and
2 noted that claim 1 recites the biological signal, and
3 counsel said there's similarity between these claims, and
4 how they're written. I'd like to get your response to
5 that.

6 MR. NASH: I think the purpose of the inquiry is
7 first to begin with what is in the actual claim itself,
8 claim 14. And here -- and again I think this kind of gets
9 back to a lot of the discussions we've been having, and the
10 discussions by my colleague Mr. Nolan is, is it appropriate
11 to rewrite the claims.

12 Other claims may use different language, and
13 that's fine, but in this case claim 14 use the term
14 "biometric," and, as a result, that is what the claim
15 states. And we need to begin and end kind of that inquiry
16 there.

17 Sure, we can gain insight from it. But if we
18 adopt the correction that's being offered by Samsung, it's
19 now broadening the scope of claim 14 to include biological
20 information when the patentee selected the term "biometric"
21 and we don't know what the patentee intended. Maybe it was
22 a mistake, maybe it wasn't. But we're not in a position
23 here to make that determination.

24 But we do know there is an antecedent basis
25 issue, and that point is not in dispute.

1 PRESIDING JUDGE: All right. Thank you.

2 MR. NASH: Thank you.

3 MR. PENSABENE: Your Honor, I'll be brief.

4 As your Honor may recall from my closing remarks
5 when I first talked about this term, I challenged Oura to
6 point to us where in the intrinsic record it talks about
7 biometric information, where it talks about identifying
8 individuals based on physical characteristics, where it
9 even mentions fingerprints, finger lengths, facial
10 features, et cetera.

11 Oura shows nothing. It's simply not something
12 disclosed in the spec. And following the law that Oura
13 itself cites, based on the written description, Samsung
14 would not be entitled to a claim that covers the
15 identification of individuals based on physical
16 characteristics.

17 So Oura's proposed construction correction can't
18 possibly be correct.

19 The other point I wanted to make, unless your
20 Honor has questions, is that counsel went on and on about
21 how Samsung is improperly broadening the claim. And I
22 would submit we're not broadening the claim. There's no
23 case where biometric information is subsumed within
24 biological information, or vice versa.

25 They are two different concepts first of all.

1 So I would take issue with the fact, the characterization
2 we're broadening the claim.

3 We're changing it, correcting it, yes. But I
4 don't know that I would call that broadening.

5 And secondly, and your Honor hit on this point,
6 there's no per se rule against broadening a claim by
7 correction. You know, by definition, if there's a mistake
8 in the claim, there's something wrong that has to be
9 corrected, that correction may result in the claim being
10 slightly broader.

11 You know, there's just no -- there's no rule
12 that says you can't broaden the claim.

13 Again, I dispute whether it is even broadening.

14 Unless your Honor has any other questions, I
15 don't have anything else.

16 PRESIDING JUDGE: I do.

17 MR. PENSABENE: Sure.

18 PRESIDING JUDGE: Can you put up Oura's
19 slide 39.

20 MR. PENSABENE: Can you put it up, please? I'll
21 switch over.

22 This one?

23 PRESIDING JUDGE: Yes. Oura seems to be arguing
24 that biological signal is specifically defined as relating
25 to muscle contraction or muscle relaxation, and I wanted to

1 get your response to that.

2 MR. PENSABENE: Well, I'll switch back to our
3 presentation, if I may. I'll suggest it's not. I'm trying
4 to find it, I apologize. Give me one second, your Honor.

5 It is clearly calling that an example. It says
6 "the second signal may be a biosignal associated with
7 biological information such as, for example, muscle
8 contraction and muscle relaxation."

9 It goes on, and that's column 5 at lines 14 to
10 17. Also column 3 lines 56 to 58. "For example, a
11 biosensor may be able to detect signals generated by
12 muscle" contractions.

13 So these are clearly examples. There is
14 nothing, nothing in the patent, that indicates a clear
15 intent to limit biological signals to a special meaning of
16 only relating to muscle contraction or relaxation. There's
17 nothing even remotely close to lexicography or definition
18 or anything like that, or disclaimer.

19 It is in fact the exact opposite. The spec is
20 crystal-clear, crystal-clear, that those muscle
21 contractions and relaxations are just examples.

22 PRESIDING JUDGE: Okay. My other question is a
23 similar question I asked to Mr. Nash, which is in
24 determining whether and how to make a correction, is it
25 appropriate to look at the prosecution history?

1 MR. PENSABENE: Absolutely, your Honor. That's
2 part of the intrinsic record.

3 And again, Oura clearly did look at the
4 prosecution history, and the best that they could come up
5 with, the only arguable support, is that the patentee
6 overlooked or missed the mistake.

7 There was nothing in there -- again, there's
8 nothing in the prosecution history that talks about
9 biometric information, identifying a user based on physical
10 characteristics, or any of the other things they talk
11 about, like finger length, fingerprints, retinal scans.
12 None of that is mentioned.

13 And there's absolutely no disclosure of any
14 means by which that identification could be made. There's
15 no biometric sensors, there's no fingerprint sensor,
16 there's no retinal scanner. None of that is in the spec.
17 None of that is supported by the spec, and Samsung would
18 not be entitled to a claim that encompassed retinal scans
19 for purposes of identifying someone.

20 PRESIDING JUDGE: All right. I don't have any
21 further questions. Thank you.

22 MR. PENSABENE: Thank you, your Honor.

23 PRESIDING JUDGE: All right. Is there anything
24 else? Yes, please.

25 MR. NASH: One brief comment, your Honor.

1 Actually, two brief comments.

2 I'd like to first just kind of draw the Court's
3 attention back to the '359 patent, specifically at column
4 1, and I'm looking at lines 43 to 45. This is just kind of
5 discussing what the purpose of the patent is. As mentioned
6 during my arguments and as kind of explained in the
7 briefing, the purpose of this patent is it's a wearable
8 mobile device model that recognizes an intention of a user
9 with greater precision, is desirable to improve user
10 experience.

11 So really the whole thrust and focus of the '359
12 patent is how are we detecting and determining intentional
13 motions and movements of a user to control an external
14 device.

15 And then responding to Complainants' argument
16 that nowhere in the patent does it discuss retinal scans,
17 fingerprint lengths, that's not necessarily needed if a
18 person of skill understands what biometric means, and in
19 this case that is the case. It is understood.

20 With that, I have nothing further, unless there
21 are additional questions.

22 PRESIDING JUDGE: Okay. No, thank you.

23 MR. NASH: Thank you for your time.

24 PRESIDING JUDGE: All right. Is there anything
25 else we need to talk about with respect to claim

1 construction?

2 MR. PENSABENE: Nothing from Complainant, your
3 Honor.

4 MR. NOLAN: Nothing more from Respondent, your
5 Honor.

6 PRESIDING JUDGE: Thank you. So then let's move
7 to the next issue, which is the letter on May 27 from
8 Samsung, the letter on May 28 from Oura.

9 What is the status?

10 MR. TRAINOR: Well, the status, your Honor, is
11 that we were unaware of that May 28 letter until about 40
12 minutes ago. We were not served a copy of Oura's response.

13 PRESIDING JUDGE: That's unfortunate.

14 MR. TRAINOR: Yes. It happens, mistakes do
15 happen.

16 PRESIDING JUDGE: Sure, okay. Can we still
17 address this now?

18 MR. TRAINOR: We can. I have not had a chance
19 to review the letter but I'm happy to answer any questions.

20 PRESIDING JUDGE: Okay. So, well, what's the
21 status of Samsung's response to the arguments?

22 MR. TRAINOR: Your Honor, we responded to them
23 on Friday at the deadline with an objection to each one of
24 them, denying them based on the objection on the pending
25 motion for protective order, or letter discovery dispute.

1 PRESIDING JUDGE: Okay. On Friday. So that --

2 MR. TRAINOR: May 29.

3 PRESIDING JUDGE: Okay.

4 MR. TRAINOR: Close of fact discovery. I was in
5 Korea, so my mind and body are all discombobulated with
6 dates and days.

7 PRESIDING JUDGE: Okay. All right. Who is
8 going to be addressing this issue for Oura?

9 MR. LANDINGER: I am, your Honor.

10 PRESIDING JUDGE: All right. You can stay right
11 there, is fine.

12 So I completely understand mistakes happen, but
13 do you dispute that the response letter wasn't served?

14 MR. LANDINGER: No, your Honor, I checked.
15 Mr. Trainor came up to me on break. I e-mailed him a
16 letter at 11:09 within a minute or two of him flagging it
17 for me. Mistakes happen, your Honor. We take full
18 responsibility for this.

19 That said, under ground rule 5.6.1.1, it's clear
20 that letters have to be responded to the next day. So it's
21 a little surprising to us that Friday went by, we didn't
22 get a, hey, did you serve something yesterday, we didn't
23 get it. Monday went by, and then yesterday they e-mailed
24 us with a schedule for today, confirming that we would be
25 discussing this, and this didn't come up until the break,

1 the 11:00 break.

2 So nothing in our response should be surprising
3 to them. It's all what we said on the meet and confer. So
4 we're ready to address this if your Honor is.

5 PRESIDING JUDGE: Okay. I am. I'm certainly
6 not going to place any blame on Samsung for not asking you
7 --

8 MR. LANDINGER: We take the responsibility, your
9 Honor.

10 PRESIDING JUDGE: Yeah. So the rest of it I
11 don't really understand. Okay.

12 So Oura in its response, and this question is
13 directed to Oura, says a couple things. First, Samsung's
14 request is premised on the volume and repetitive nature of
15 the requests, which I thought was an excellent point for
16 Samsung.

17 I mean, I'd say out of the gate, serving 2288
18 requests for admission is unreasonable regardless of what
19 the subject matter is or what the status of the
20 investigation is. Just that number in itself is facially
21 unreasonable.

22 And based on your response, I don't see you
23 really disagreeing with that. Samsung's request is based
24 on the -- premised on the volume and repetitive nature of
25 the requests. Okay.

1 You also point out that Oura was served with
2 nearly 1000 RFAs in a different investigation. And notably
3 not by Samsung. Notably or not, but it wasn't.

4 I have to say, and I was the ALJ on 1398, if
5 someone had brought that to my attention, I may very well
6 have said that was unreasonable. So the fact that
7 something unreasonable happened in an earlier investigation
8 with nearly 1000 RFAs doesn't support the reasonableness of
9 serving more than double that amount in this investigation.

10 I appreciate the point that the number of RFAs
11 is not limited by rule -- by ground rule, or by regulation,
12 and other discovery is. That does not support, however,
13 that RFAs are a free-for-all.

14 Also, the number of attorneys, and both sides
15 have listed a lot on this investigation, the number of
16 attorneys doesn't support that either.

17 I mean, by your math, if there are 28 people
18 that have signed onto the protective order for Oura, that
19 means each one would take 100 and respond to them. I just
20 don't understand that logic, and I don't think that's how
21 things would work in practice.

22 One of -- 210.27 has a provision that says to
23 consider the burden or expense of the proposed discovery
24 outweighs the likely benefit considering the needs of the
25 investigation, the importance of the discovery in resolving

1 the issues to be decided by the Commission and matters of
2 public concern.

3 And I think here just the simple volume of these
4 requests falls within and raises those issues.

5 So for those reasons, I am granting the motion
6 for protective order for the RFAs in their entirety.

7 I know the parties, there was some proposal or
8 suggestion that a number of RFAs could be selected from
9 them. I think this calls for a do-over.

10 Fact discovery has closed. This issue was
11 pending since fact discovery closed. So I will allow Oura
12 the opportunity, notwithstanding the close of fact
13 discovery, to serve a set of RFAs. That set of RFAs must
14 be reasonable in number. I'm not here to tell you what
15 number is reasonable because I think that varies.

16 I am here to say that 2288 is not.

17 So with that said, I'd like to hear anything you
18 have to say in response, and I would also like to know when
19 RFAs -- when -- if you choose to do that, you don't have to
20 serve them obviously, if you don't want.

21 But if you choose to do that, when that would
22 happen?

23 MR. LANDINGER: So we understand your Honor's
24 ruling. Opening expert reports are due a week from today.
25 All of these RFAs related to not just the status of whether

1 certain references were prior art, certain products on sale
2 including some of Samsung's own phones that they had the
3 boilerplate objection/denial last Friday. Along with all
4 of the various elements, including various ones that seem
5 pretty straightforward as far as a motion sensor or
6 wearable device.

7 We understand that there is a time where they
8 are going to serve the undisputed claim limitations, that's
9 July 7. That's after expert reports are due, rebuttal
10 reports are due June 26.

11 So we understand your Honor -- we could put
12 forth a set of RFAs quickly, maybe not today but probably
13 by tomorrow. I have to confer with my team, and I think we
14 can work that out with Samsung as far as probably what's
15 reasonable, whether it's 250 to 500.

16 I guess, Sean, you're shaking your head, but
17 you're still asserting 38 claims, and you've objected to
18 every single limitation on every single patent limitation
19 in your nonburden contention rogs, which forces us to
20 address every single limitation in our expert report next
21 Wednesday.

22 So, you know, it kind of eviscerated the point
23 of a nonburden contention rog when you just say we object
24 to everything, we deny every single limitation as met.

25 That's what these RFAs are trying to get at.

1 PRESIDING JUDGE: All right. So your comments
2 should be directed to me, not to counsel. If there's
3 further meet and confer after this, you can discuss that
4 then. Now is not the time.

5 MR. LANDINGER: Okay. Understood, your Honor.

6 PRESIDING JUDGE: With respect to invalidity,
7 and these are directed -- these RFAs were directed to
8 invalidity issues, I have not looked at, and I have not
9 assessed, and I am not here assessing, the propriety of
10 Samsung's responses to discovery requests. That's not an
11 issue that was raised before me, whether or not their
12 nonburden contentions are appropriate. If that issue had
13 been raised, I would have considered it. It was not.

14 I understand that's the reason you are saying
15 you served these RFAs. But those are -- the issues we're
16 addressing here are separate.

17 I am addressing a volume and burden issue that
18 were raised by serving a set of RFAs that is just
19 outrageous.

20 With respect to invalidity, it is Oura's burden
21 to show that. You know, I understand why you want to get
22 more information from contentions, whether that's an issue
23 later with respect to what experts can do. That can be
24 addressed later.

25 But this is a burden issue for Oura. So to the

1 extent that Oura is going to prove that something is prior
2 art, or prove that elements of the claims are included in
3 the prior art, it is Oura's burden to do that.

4 And while it is terrific when parties can get
5 agreement on what is disputed and not, the fact of
6 nondispute does not change that there is a burden. And
7 that burden for invalidity rests with Oura.

8 So I'm not sure that changes or helps, but it's
9 still up to Oura to prove that the prior art is prior art,
10 and that the prior art discloses what's claimed, for every
11 element, notwithstanding what Samsung chooses, in your view
12 correctly or not, to dispute or not.

13 So from that, Oura will -- if it chooses to
14 serve, if it chooses to, by tomorrow RFAs, I will not
15 entertain a motion to shorten time response for the RFAs.
16 Samsung is entitled to the full 10 days.

17 I understand there are other dates that are
18 coming up in the schedule, but that's just going to be what
19 it is.

20 Are there any other questions?

21 MR. LANDINGER: None from us, your Honor.

22 PRESIDING JUDGE: Any questions?

23 MR. TRAINOR: No, your Honor.

24 PRESIDING JUDGE: Is there anything else on this
25 issue we need to discuss?

1 MR. TRAINOR: No, your Honor, not from
2 Complainants.

3 PRESIDING JUDGE: All right.

4 MR. LANDINGER: Nothing from Oura, your Honor.

5 PRESIDING JUDGE: Are there any other issues we
6 need to discuss before we adjourn?

7 MR. TRAINOR: None from Complainants, your
8 Honor.

9 MR. LANDINGER: None from Oura, your Honor.

10 PRESIDING JUDGE: Thank you very much for your
11 time and preparation.

12 (Whereupon, at 12:12 p.m., the hearing was
13 concluded.)

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1 CERTIFICATE OF REPORTER

2 TITLE: Certain Wearable Devices
INVESTIGATION NO: 337-TA-1478
3 HEARING DATE: 06-03-26
LOCATION: Washington, DC
4 NATURE OF HEARING: Markman Hearing and
Case Management Conference

5
I hereby certify that the foregoing/attached
6 transcript is a true, correct and complete record of the
above-referenced proceeding(s) of the U.S. International
7 Trade Commission.

DATE: 06-03-26
8 SIGNED: Mark A. Jagan
Signature of the Contractor or the
9 Authorized Contractor's Representative

10 I hereby certify that I am not the Court
Reporter and that I have proofread the
11 above-referenced transcript of the proceedings
of the U.S. International Trade Commission,
12 against the aforementioned Court Reporter's
notes and recordings, for accuracy in
13 transcription in the spelling, hyphenation,
punctuation and speaker identification and did
14 not make any changes of a substantive nature.
The foregoing/attached transcript is a true,
15 correct and complete transcription of the
proceedings.

16 SIGNED: Christopher Weiskircher
Signature of Proofreader

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I hereby certify that I reported the
18 above-referenced proceedings of the U.S.
International Trade Commission and caused
19 to be prepared from my tapes and notes of
the proceedings a true, correct and
20 complete verbatim recording of the
proceedings.

21 SIGNED: CARMEN SMITH
Signature of Court Reporter

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24

25